

Company number
15735478

THE COMPANIES ACT 2006
COMPANY LIMITED BY SHARES
WRITTEN RESOLUTIONS
OF
ACTIUM TOPCO (UK) LIMITED

(passed on 31 January 2025)

In accordance with Chapter 2 of Part 13 of the Companies Act 2006 (the **Companies Act**), the directors of Actium Topco (UK) Limited (the **Company**) proposed that the following resolution be passed as a special resolution:

Special resolution

1. **THAT** the articles of association attached to this resolution (the **New Articles**) be adopted as the articles of association of the Company in substitution for, and to the exclusion of, the existing articles of association of the Company pursuant to section 21(1) of the Companies Act, such adoption to take effect immediately.

AGREEMENT OF ELIGIBLE MEMBERS*

The undersigned, being eligible members on 31 January 2025 (the **Circulation Date**), irrevocably agree to the resolution set out above:

Signed by

DocuSigned by:
Charles Wellham
0EEE8765F8G14D4.....

for and on behalf of **BRIDGEPOINT EUROPE VII NOMINEES LIMITED**
acting by its attorney

Date: 31 January 2025

Signed by

.....

Jonathan Balkin

Date: _____

Signed by

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Huw Barker

Date: _____

Signed by

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Evan Skalski

Date: _____

Signed by
Luc Baqué

Date: _____

Signed by
Neil Curham

Date: _____

Signed by
Sam Large

Date: _____

Signed by
Julien Dernoncourt

Date: _____

Signed by

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Miloslav Moc

Date: _____

Signed by

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Sarah Peacock

Date: _____

Signed by

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Matthew Mace

Date: _____

Signed by

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Greg Cook

Date: _____

Signed by
Pierre Bauwens

Date: _____

Signed by
Alice Fyfe

Date: _____

Signed by
Joseph Marti

Date: _____

Signed by
Sarah Khan

Date: _____

Signed by

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Michael Burns

Date: _____

Signed by

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Caroline Burkart

Date: _____

Signed by

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Lee Griggs

Date: _____

Signed by

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Duncan Spencer

Date: _____

Signed by
Rachel Coldham

Date: _____

Signed by
Christine Skouenborg

Date: _____

Signed by
Christopher Kroeger

Date: _____

Signed by
Jessica Tull

Date: _____

Signed by

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Renaud Piastrelli

Date: _____

Signed by

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Anna Skylakaki

Date: _____

Signed by

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Paul Tan

Date: _____

Signed by

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Matt Bacon

Date: _____

Signed by

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Pierre-François Hue

Date: _____

Signed by

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Edouard Veysset

Date: _____

Signed by

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Theodore Stanton

Date: _____

Signed by

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Alex Heasman

Date: _____

Signed by
Luke Tones

Date: _____

Signed by
Joe Docker

Date: _____

Signed by
David Shuttle

Date: _____

Signed by
Marie-Vincent Bikouedi

Date: _____

Signed by

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Joe Morant

Date: _____

Signed by

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Jon Benson

Date: _____

Signed by

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Nora Soos

Date: _____

Signed by

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Dan Mahony

Date: _____

Signed by

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Laura Kayrouz

Date: _____

Signed by

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Thibaut Seignouret

Date: _____

Signed by

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Sam Iles

Date: _____

Signed by

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William Karkar

Date: _____

Signed by
Rory Craven

Date: _____

Signed by
Brett Nielsen

Date: _____

Signed by
Keith Aylwin

Date: _____

Signed by
Charles-Antoine Desjardins

Date: _____

Signed by
Vincent Mignon

Date: _____

Signed by
Nicolas Grangeon

Date: _____

Signed by
Claire Wallace

Date: _____

Signed by
Rob Owen

Date: _____

Signed by

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Greg Glass

Date: _____

Signed by

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Hugues Delage

Date: _____

Signed by

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Scott Lee

Date: _____

Signed by

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Britt van Dalen

Date: _____

Signed by
Natalie McIntyre

Date: _____

Signed by
Nick Dekker

Date: _____

Signed by
Miles Bishop

Date: _____

Signed by
Alexander Monte

Date: _____

Signed by

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Andrew Elko

Date: _____

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Greg Faragher-Thomas

Date: _____

Signed by

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Jon Reed

Date: _____

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Anand Preece

Date: _____

Signed by

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Kirby Eckels

Date: _____

Signed by

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Nick Fienberg

Date: _____

Signed by

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Matthew Harris

Date: _____

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Ozer Niyazi

Date: _____

Signed by

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Sarah Simmonds

Date: _____

Signed by

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Sven Kuonen

Date: _____

Signed by

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Michael Thomson

Date: _____

Signed by

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Stanislas Vital

Date: _____

Signed by
Troy Mortimer

Date: _____

Signed by
David Hamill

Date: _____

Signed by
Keval Mehta

Date: _____

Signed by
Tom Whitson

Date: _____

Signed by
Vanessa Bingle

Date: _____

Signed by
David Clarke

Date: _____

Signed by
Divakar Padmanathan

Date: _____

Signed by
Richard Rouse

Date: _____

Signed by

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Olivia Vinden

Date: _____

Signed by

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John Paton

Date: _____

Signed by

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Bradley Northrop

Date: _____

Signed by

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Richard Lavelle

Date: _____

Signed by
Veit Jung

Date: _____

Signed by
Bernardo Castel-Branco

Date: _____

Signed by
Jamie Forrester

Date: _____

Signed by
James Turnbull

Date: _____

Signed by
Mike Smith

Date: _____

Signed by
Bo Lantrop

Date: _____

Signed by
Bastiaan Aalders

Date: _____

Signed by
Caoimhe Munif

Date: _____

Signed by
Valentin Dadure

Date: _____

Signed by
Hugo Ney

Date: _____

Signed by
Tom Williams

Date: _____

Signed by
Michael Chaille

Date: _____

Signed by
Chris Martin

Date: _____

Signed by
Katie Simm

Date: _____

Signed by
Nicholas Barbone

Date: _____

Signed by
Sam Pendlebury

Date: _____

Eligible members must signify their agreement to the proposed resolution as follows: (i) **by hand**, by delivering a signed copy to Jessica Teng at Allen Overy Shearman LLP, One Bishops Square, London, E1 6AD; or (ii) **by e-mail**, by sending a scanned signed copy of the resolution to Jessica.Teng@aoshearman.com. Eligible members must signify their agreement to the proposed resolution within the period of 28 days from and including the circulation date. Once the eligible members have signified their agreement to the proposed resolution, their agreement may not be revoked. The proposed resolution will lapse if it is not passed by the end of that 28-day period.

***Note:** An "eligible member" is a member who is or would be entitled to vote on the above resolutions on the circulation date (i.e. the date on which the resolutions are sent or submitted to the member).

NEW ARTICLES

[To be appended]

THE COMPANIES ACT 2006
A PRIVATE COMPANY LIMITED BY SHARES
ARTICLES OF ASSOCIATION

of

ACTIUM TOPCO (UK) LIMITED

(Adopted by Special Resolution passed on _____ 2025)

No. 15735478

A&O SHEARMAN

Allen Overy Shearman Sterling LLP

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Company number
15735478

THE COMPANIES ACT 2006
A PRIVATE COMPANY LIMITED BY SHARES
ARTICLES OF ASSOCIATION
OF
ACTIUM TOPCO (UK) LIMITED

*(adopted by special resolution
passed on _____ 2025)*

PRELIMINARY

1. Model articles do not apply

None of the articles in the model articles for a private company limited by shares set out in Schedule 1 to The Companies (Model Articles) Regulations 2008 shall apply to the Company.

INTERPRETATION

2. Defined terms

- (a) In the Articles, unless the context requires otherwise:

A Shares means the A ordinary shares of £0.01 each in the capital of the Company and **A Shareholder** means a holder of any of those shares;

A Balance Percentage has the meaning given to it in Article 43(d);

acting in concert shall bear the meaning given to it in the City Code on Takeovers and Mergers;

Adjusted Loan Note Coupon has the meaning given to it in Article 56(c)(iii)(B);

Adjusted Priority Amount has the meaning given to it in Article 56(c)(ii)(B);

Adjusted Strip Price has the meaning given to it in Article 56(f);

Adjusted Sweet Price has the meaning given to it in Article 57(g);

Affiliate means:

- (i) in relation to a person, all of that person's subsidiary undertakings, all parent undertakings of that person, and all subsidiary undertakings of each of those parent undertakings; and
- (ii) additionally, in respect of a member of the Investors' Group:
 - (A) any member of the Investors' Group;

- (ii) any general partner or limited partner or other partner, or trustee, nominee, custodian, operator, administrator, managing member, manager or investment adviser to or of any of them (or to or of any group undertaking of any of them);
- (iii) any group undertaking of any general partner, trustee, nominee, custodian, operator, administrator, managing member, manager or investment adviser to or of any of them (or to or of any group undertaking of any of them, but excluding any portfolio company thereof);
- (iv) any Fund which has the same general partner, trustee, nominee, operator, administrator, managing member, manager or investment adviser as that Investor or any member of the Investors' Group;
- (v) any Fund which is advised, or the assets of which (or some material part thereof) are managed (whether solely or jointly with others), by any member of the Investors' Group including any feeder vehicle set up to facilitate investment in and any vehicle that invests on a parallel basis with, or in lieu of, any such Fund;
- (vi) any Fund in respect of which that Investor or its general partner, investment adviser, manager, operator, nominee or any member of the Investors' Group is a limited partner, general partner, administrator, managing member, manager or investment adviser including any feeder vehicle set up to facilitate investment in and any vehicle that invests on a parallel basis with, or in lieu of, any such Fund; and
- (vii) any Co-Investment Scheme of any of them (or any group undertaking of any of them), any Co-Investment Scheme in which the Investors are a participant or any person holding shares under such Co-Investment Scheme or entitled to the benefit of shares under such Co-Investment Scheme

but excludes any portfolio company or vehicle of an Investor or the holding vehicle of such portfolio company or vehicle;

Alternate or **Alternate Director** has the meaning given in Article 31(a) and Article 32(a), respectively;

Appointor has the meaning given in Article 31(a);

Approval has the meaning given in Article 51(a);

Articles means the Company's articles of association, as from time to time amended;

Available Profits means profits available for distribution within the meaning of the Companies Act;

B Balance Percentage has the meaning given to it in Article 43(d);

B Shares means the B ordinary shares of £0.01 each in the capital of the Company and **B Shareholder** means a holder of any of those shares;

B Share Price has the meaning given to it in Article 56(c);

Bad Strip Leaver has the meaning given to it in Article 56(a);

Bad Sweet Leaver has the meaning given to it in Article 57(a);

Bad Sweet Leaver Price has the meaning given to it in Article 57(d)(i)(B);

Balance Percentages has the meaning given to it in Article 43(d);

bankruptcy includes individual insolvency proceedings in a jurisdiction other than England and Wales or Northern Ireland which have an effect similar to that of bankruptcy;

Board means the board of directors of the Company;

Board Selected Transfer has the meaning given to it in Article 51(f)(ii);

Board Selected Transfer Notice has the meaning given to it in Article 51(f)(ii);

Business Day means a day which is not a Saturday or a Sunday or a public holiday in England;

C Shareholder means the C1 Shareholder or C2 Shareholder (as applicable);

C Shares means C1 Shares and/or C2 Shares (as applicable);

C1 Share Price has the meaning given to it in Article 57(d)(i);

C1 Shares means C1 ordinary shares of £0.01 each in the capital of the Company and **C1 Shareholder** means a holder of any of those shares;

C2 Share Price has the meaning given to it in Article 57(d)(ii);

C2 Shares means C2 ordinary shares of £0.01 each in the capital of the Company and **C2 Shareholder** means a holder of any of those shares;

Capitalised Sum has the meaning given to it in Article 64(a)(ii);

CEO means the chief executive officer of the Group from time to time, being, as at the Completion Date and the Sweet Issuance Date, Luc Baqué;

Completion Date means 19 August 2024;

Co-Investment Scheme means any co-investment scheme, being a scheme under which certain officers, employees, members or partners of an Investor or its investment adviser, general partner, manager, operator, nominee or any member of the Investors' Group are entitled or required (as individuals or through a Fund or any other vehicle) to acquire Shares, Loan Notes and/or any other Security;

Continuation Fund means, in respect of an Investor, a continuation fund of any existing Fund of the Investor (more specifically, one or more Fund, funds, vehicles or other arrangements which is an Affiliate of such Investor and which is established to acquire (or otherwise receive a transfer or contribution of) part or all of the Securities held by any existing Fund of such Investor), save where such fund is established to receive Securities as part of a *bona fide* internal reorganisation by an Investor and/or its Affiliates for *bona fide* tax, legal or regulatory reasons without any change to the economic rights of the holders of Securities in the Group or direct or indirect ultimate ownership of any interests therein;

Chair means the Director appointed under Article 25;

Chair of the Meeting has the meaning given in Article 69(c);

Clawback Manager has the meaning given to it in clause 22.4 of the Investment Deed;

Companies Act means the Companies Act 2006 including any statutory modification or re-enactment of it for the time being in force;

Company means Actium Topco (UK) Limited (registered number 15735478);

Compulsory Sellers has the meaning given in Article 55(a);

Connected Person shall have the meaning given to it in section 1122 of the Corporation Tax Act 2010;

Controller has the meaning given to it in Article 53(d);

D Balance Percentage has the meaning given to it in Article 43(c);

D Shares means D1 Shares and/or D2 Shares (as applicable);

D1 Share Price has the meaning given to it in Article 57(d)(i);

D1 Shares means D1 ordinary shares of £0.01 each in the capital of the Company and **D1 Shareholder** means a holder of any of those shares;

D2 Share Price has the meaning given to it in Article 57(d)(ii);

D2 Shares means D2 ordinary shares of £0.01 each in the capital of the Company and **D2 Shareholder** means a holder of any of those shares;

Director means a director of the Company, and includes any person occupying the position of director, by whatever name called;

Distribution Recipient has the meaning given in Article 59(b);

document includes, unless otherwise specified, any document sent or supplied in electronic form;

Drag Along Notice has the meaning given in Article 55(a);

Drag Along Sellers has the meaning given in Article 55(a);

electronic form has the meaning given in section 1168 of the Companies Act;

Eligible Director means a Director who is entitled to vote on the relevant matter at a Directors' meeting but excluding any Director whose vote is not to be counted in respect of the relevant matter;

Employee means an employee, secondee, consultant, contractor, officer or Director (other than an Investor Director) and the terms **Employed** and **Employment** shall be construed accordingly;

Employee Trust means any trust which is or may be established from time to time, the terms of which are approved by the Majority A Holders, to enable or facilitate the holding of Securities by, or for the benefit of, the Employees of the Group (acting as trustee, including for the purposes of acting as a 'warehouse', and / or nominee (as applicable));

Encumbrance means any mortgage, charge (fixed or floating), pledge, lien, option, right to acquire, assignment by way of security, trust arrangement for the purpose of providing security or any other security interest of any kind, including retention arrangements;

equity share means any Share other than a Share which, either as respects dividends or as respects capital, only carries the right to participate up to a specified amount in a distribution;

executed includes any mode of execution;

Exit means:

- (i) a Listing; or
- (ii) a Sale;

Fair Price means:

- (i) in respect of a Minority Co-Investor's Securities which are to be transferred subject to and in accordance with Article 51 or in respect of a Minority Co-Investor's B Shares which are to be transferred subject to and in accordance with Article 56, such price as may be determined by the Board (or any committee to which the Board delegates responsibility), with Investor Consent, and notified to the Minority Co-Investor in writing, or such price as may be determined in accordance with Article 56(h) (if applicable); or
- (ii) in respect of a Sweet Leaver's C1 Shares, C2 Shares, D1 Shares and/or D2 Shares (as applicable) which are to be transferred subject to and in accordance with Article 57 such price as may be determined by the Board (or any committee to which the Board delegates responsibility) with Investor Consent and notified to the Sweet Leaver in writing (having regard to the factors set out in Article 57(h)(i), acting in good faith), or such price as may be determined in accordance with Article 57(h) (if applicable);

Family Member in relation to an individual means that individual's spouse, civil partner or child (including step children and adopted children);

Family Trust means a means a trust (whether arising under a settlement, declaration of trust, testamentary disposition or on an intestacy) under which no immediate beneficial interest in the shares in question is for the time being or may in future be vested in any person other than the person establishing the trust (or, as the case may be, under whose testamentary disposition or intestacy the trust was established) and the relevant person's Relations;

Finance Documents has the meaning given to it in the Senior Facilities Agreement;

First Meeting has the meaning given to it in Article 15(c);

Free Shares means the C2 Shares and D2 Shares allocated for free to the relevant Minority Co-Investor, in accordance with the Free Shares Plan;

Free Shares Plan means the free shares plan to be constituted by the Free Shares Plan Letters (as defined in the Investment Deed);

FSMA means the Financial Services and Markets Act 2000;

Fund means any fund, bank, company, unit trust, investment trust, investment company, limited, general or other partnership, industrial provident or friendly society, any collective investment scheme (as defined by the FSMA), any investment professional (as defined in article 19(5) of the Financial Services and Markets Act 2000 (Financial Promotion) Order 2005 (the **FPO**)), any high net worth company or unincorporated association or high value trust (as defined in articles 49(2) (a) to (b) and article 49(6) of the FPO), any pension fund or insurance company or any person who is an authorised person under the FSMA, but shall exclude the Company;

Fund Participant has the meaning given to it in Article 50(a)(iv);

Full Tag Along Offer has the meaning given in Article 54(a)(ii);

fully paid in relation to a Share, means that the nominal value and any premium to be paid to the Company in respect of that Share have been paid to the Company;

Good Strip Leaver has the meaning given to it in Article 56(a);

Good Sweet Leaver has the meaning given to it in Article 57(a);

Group means the Company and its Subsidiaries from time to time and **Group Company** means any of them;

Group Employees means the Employees of the Group;

hard copy form has the meaning given in section 1168 of the Companies Act;

holder in relation to Shares means the person whose name is entered in the register of members as the holder of the Shares;

Independent Expert means a partner at Ernst & Young LLP, KPMG LLP, Deloitte LLP, PricewaterhouseCoopers LLP or, where no such person is able or willing to act, or where the Majority A Holders so direct, any other reputable international accountancy firm nominated by the Board (or any committee to which the Board delegates such responsibility) (with Investor Consent) (in each case acting as an expert and not as an arbitrator) who shall, in each case, be engaged on terms to be agreed by the Board (or any committee to which the Board delegates such responsibility) (with Investor Consent);

Inherent Conflict has the meaning given in Article 20(a);

instrument means a document in hard copy form;

Initial Amount has the meaning given to it in Article 43(d);

Intermediate Sweet Leaver has the meaning given to it in Article 57(a);

Investment Deed means the investment deed dated on or around the Completion Date between, among others, the Company, Midco 1, the Original Managers (as defined therein), the Original Minority Co-Investors (as defined therein) and the Investors (as defined therein), as amended, supplemented, novated or replaced from time to time;

Investors means the Investors as defined in the Investment Deed and any other person who has agreed to adhere to the Investment Deed as an Investor and whose rights and obligations as an Investor under the Investment Deed have not terminated;

Investor Consent means:

- (i) the consent or approval of one of the Investor Directors or, if there is only one appointed at the time, of that sole Investor Director, given in writing or given at a meeting of the Board (or of a committee of the Board) and in each case specifically referred to as representing Investor Consent (so that an Investor Director may consent to a matter in the Investor Director's capacity as a Director, without that consent representing consent under this definition unless the Investor Director specifically indicates it as being so); or

(ii) the written approval of the Majority A Holders;

Investor Directors means those directors of the Company appointed under Article 24 (or their respective Alternates);

Investors Equity Proceeds has the meaning given to it in Article 43(d);

Investors' Group means each Investor (and, where an Investor is a limited partnership, the general partner, manager, adviser and/or operator of such Investor) and such person's subsidiary undertakings or, as the case may be, each Investor (or, where an Investor is a limited partnership, the general partner, manager, adviser and/or operator of such Investor), any parent undertaking, whether direct or indirect, of such person and any other subsidiary undertaking of any such parent undertaking from time to time (excluding any portfolio company thereof) and each of their respective Affiliates but excludes any portfolio company or vehicle of an Investor or the holding vehicle of such portfolio company or vehicle;

Investors Invested Equity has the meaning given to it in Article 43(d);

Investors Return has the meaning given to it in Article 43(d);

IRR has the meaning given to it in Article 43(d);

Listing means the admission to listing of any of the equity shares in the Company on any recognised investment exchange (as defined in section 285 of the Financial Services and Markets Act 2000);

Loan Note Instrument means the instrument constituting the Loan Notes, dated on or around the Completion Date and as amended, supplemented, novated or replaced from time to time and includes any Additional Loan Note Instrument as therein defined;

Loan Note Outstanding Principal has the meaning given to it in Article 43(b)(i)(B);

Loan Notes means the 12% unsecured loan notes to be constituted by the Loan Note Instrument (and any other subsequent instrument on terms substantially similar to the Loan Note Instrument, other than as to the principal amount of loan notes constituted) and issued by Midco 1 includes any Additional Notes as therein defined;

Majority A Holders means the holder or holders of more than 50 % of the A Shares in issue;

Manager and Minority Co-Investor Permitted Transfer has the meaning given in Article 50(b);

Managers means the Original Managers as defined in the Investment Deed and any other person who has agreed to adhere to the Investment Deed as a Manager and whose rights and obligations as a Manager under the Investment Deed have not terminated;

Mandatory Strip Transferor has the meaning given to it in Article 56(a);

Mandatory Sweet Transferor has the meaning given to it in Article 57(a);

Midco 1 means Actium Midco 1 (UK) Limited (registered number 15735608);

Minority Co-Investor Buyback Date means, in respect only to the concerned portion of Free Shares pursuant to the Free Shares Plan, the date falling on the date of expiry of the Retention Period (as that term is defined in the Free Shares Plan);

Minority Co-Investor Transfer Notice has the meaning given to it in Article 51(b);

Minority Co-Investor Proposed Transferee has the meaning given to it in Article 51(b)(i);

Minority Co-Investor Sale has the meaning given to it in Article 51(g);

Minority Co-Investor Strip Leaver has the meaning given to it in Article 56(a);

Minority Co-Investor Sweet Leaver has the meaning given to it in Article 57(a);

Minority Co-Investors means the Original Minority Co-Investors as defined in the Investment Deed and any other person who has agreed to adhere to the Investment Deed as a Minority Co-Investor and whose rights and obligations as a Minority Co-Investor under the Investment Deed have not terminated;

Notice of Strip Price has the meaning given to it in Article 56(h);

Notice of Sweet Price has the meaning given to it in Article 57(h);

Observer means an observer appointed under Article 26;

ordinary resolution has the meaning given in section 282 of the Companies Act;

Ordinary Shares means the A Shares and the B Shares or any of them;

Original Price has the meaning given to it in Article 56(f);

Outstanding Priority Amount has the meaning given to it in Article 43(b)(ii)(A);

Outstanding Loan Note Interest has the meaning given to it in Article 43(b)(ii)(B);

Original Strip Price has the meaning given to it in Article 56(f);

Original Sweet Price has the meaning given to it in Article 57(g);

paid means paid or credited as paid;

participate, in relation to a Directors' meeting, has the meaning given in Article 14;

Participating Tag Shares means: (i) in respect of a Strip Tag Along Offer, the B Shares and the Priority Shares; or (ii) in respect of a Full Tag Along Offer, the B Shares, the C Shares, the D Shares and the Priority Shares;

Permitted Transferee in relation to a person means any other person to whom that first person may transfer Shares pursuant to Article 50(a)(i);

Persons Entitled has the meaning given to it in Article 64(a)(ii);

Priority Amount means, in respect of each Priority Share, an amount equal to 12% per annum calculated on the basis of the Subscription Price of such Priority Share, accruing on a daily basis and compounding annually, less the amount of any dividends or other distributions paid in respect of such Priority Share prior to the relevant time, save in respect of a Bad Strip Leaver or a Very Bad Strip Leaver, whose Priority Amount shall be calculated in accordance with Article 56;

Priority Share Outstanding Subscription Price has the meaning given to it in Article 43(b)(i)(A);

Priority Share Price has the meaning given to it in Article 56(c)(i);

Priority Shareholder means a holder of Priority Shares;

Priority Shares means priority shares of £0.01 each in the capital of the Company;

Priority Subscription Amount means, in respect of each Priority Share, a sum equal to the amount credited as paid up on such Priority Share in respect of the nominal value thereof and any share premium thereon to the extent the same has been paid up and has not been distributed by way of bonus issue or repayment of capital in respect of that Priority Share;

Proposed Majority Transfer has the meaning given to it in Article 54(a)(ii);

Proposed Minority Transfer has the meaning given to it in Article 54(a)(i);

Proposed Tag Along Transferee has the meaning given to it in Article 54(a);

Proxy Notice has the meaning given in Article 75(a);

Relation means, in relation to an individual, the individual's spouse or civil partner or child;

Relevant Percentage has the meaning given to it in Article 57(a);

Relevant Proportion has the meaning given in Article 55(b);

Relevant Situation has the meaning given in Article 21(a);

Relevant Date means the date on which the relevant Strip Leaver or Sweet Leaver ceases to be Employed by any Group Company (or, if the Strip Leaver or Sweet Leaver has not ceased to be Employed by any Group Company, the date on which the Strip Leaver or Sweet Leaver takes the relevant action which may be restricted under the Strip Performance Condition or Sweet Performance Condition;

Restricted Period means the later of: (a) the period of 12 months from the Relevant Date less any period in which the relevant Manager is placed on Garden Leave; and (b) the period stipulated in accordance with the Investment Deed, provided that the Board (or any committee to which the Board delegates responsibility for such purposes) with Investor Consent may reduce the duration of such Restricted Period for the relevant Manager at the relevant time;

Restricted Territories means (a) any country in which the Group operates as of the Relevant Date or during the period of 24 months prior to the Relevant Date; and (b) to the extent the Group is not operating in such country at the Relevant Date, Germany, Austria, Switzerland, the Netherlands, Belgium, Luxembourg, and the Middle East and Asia Pacific regions;

Restructuring means any reorganisation, debt for equity swap, recapitalisation or other restructuring effected as a result of a breach or to avoid a breach, by any member of the Group of any covenant relating to or concerning the financial affairs and/or position of any member of the Group contained in any loan agreement or loan arrangement (in particular, but without limitation, any such covenant which is referred to in such agreement or arrangement as a "financial covenant" or similar expression) provided that the only changes to the Loan Notes shall be such changes envisaged by clause 28.6 of the Investment Deed;

Retained Securities has the meaning given to it in Article 56(g);

Sale means the sale of more than 50% of the A Shares from time to time (or beneficial interest therein) held by the Investor, or the sale or other disposal of the whole or substantially the whole of the business or assets of the Group taken together, in each case to a single third party buyer or to one or more third

party buyers (in each case who is not an Affiliate of the Investor) acting in concert, whether as a single transaction or part of a series of related transactions;

Security means any equity or debt security in whatever form issued by any Group Company, and **Securities** shall be construed accordingly;

Senior Facilities Agreement means the senior facilities agreement dated on or around the Completion Date between, among others, Actium Bidco (UK) Limited, Actium Midco 3 (UK) Limited, Actium Midco 2 (UK) Limited, Actium Bidco (US), Ltd., Global Loan Agency Services Limited and GLAS Trust Corporation Limited, as may be amended, amended and restated, supplemented, varied or novated from time to time;

Shareholder means the holder of shares in the capital of the Company;

Shares means shares in the capital of the Company;

special resolution has the meaning given in section 283 of the Companies Act;

Strip Leaver has the meaning given to it in Article 56(a);

Strip Leaver's Loan Notes Face Value has the meaning given to it in Article 56(a);

Strip Leaver Period has the meaning given to it in Article 56(a);

Strip Leaver Price has the meaning given to it in Article 56(c);

Strip Leaver's Securities has the meaning given to it in Article 56(a);

Strip Leaver's Shares has the meaning given to it in Article 56(a);

Strip Performance Condition has the meaning given to it in Article 56(a);

Strip Termination Date has the meaning given to it in Article 56(a);

Strip Tag Along Offer has the meaning given in Article 54(a)(i);

Subscription Price means, in relation to any Share, to the extent paid up, the nominal value of that Share plus the amount of any premium at which that Share was issued, to the extent the same has not been distributed by way of bonus issue or repayment of capital in respect of that Share;

Subsidiary has the meaning given in section 1159 of the Companies Act;

Sweet Issuance Date means 31 January 2025;

Sweet Leaver has the meaning given to it in Article 57(a);

Sweet Leaver Price has the meaning given to it in Article 57(d);

Sweet Leaver Period has the meaning given to it in Article 57(a);

Sweet Leaver's Shares has the meaning given to it in Article 57(a);

Sweet Performance Condition has the meaning given to it in Article 57(a);

Sweet Termination Date has the meaning given to it in Article 57(a);

Syndication has the meaning given in Article 52(a);

Tag Along Offer has the meaning given in Article 54(a)(ii);

Transfer Notice Date has the meaning given to it in Article 51(c);

Transferee has the meaning given to it in Article 55(a);

Transferred Securities has the meaning given to it in Article 51(b)(ii);

Transmittee means a person entitled to a Share by reason of the death or bankruptcy of a Shareholder or otherwise by operation of law;

Value has the meaning given to it in Article 43(b);

Very Bad Strip Leaver has the meaning given to it in Article 56(a);

Very Bad Strip Leaver Loan Note Price has the meaning given to it in Article 56(c)(iii)(C);

Very Bad Strip Leaver Price has the meaning given to it in Article 56(c)(iii)(C);

Very Bad Strip Leaver Priority Price has the meaning given to it in Article 56(c)(ii)(C);

Waterfall Event has the meaning given to it in Article 43(b);

writing or **written** includes fax and e-mail but excludes text messages and other communications in electronic form.

- (b) Unless the context otherwise requires, other words or expressions contained in these Articles bear the same meaning as in the Companies Act as in force on the date when these Articles become binding on the Company.
- (c) Unless the contrary intention appears:
 - (i) words importing the singular number include the plural number and vice versa;
 - (ii) words importing one gender include all genders;
 - (iii) references to a "**person**" include any individual, partnership, company, body corporate, corporation sole or aggregate, firm, joint venture, association, trust, government, state or agency of a state, unincorporated association of persons or organisation, in each case whether or not having separate legal personality and irrespective of the jurisdiction in or under the law of which it was incorporated or exists, and a reference to any of them shall include a reference to the others; and
 - (iv) any statute or statutory provision or statutory instrument or any document, agreement or instrument shall be construed as a reference to the same as it may have been, or may from time to time be, amended, modified, consolidated, re-enacted (if applicable) or replaced.
- (d) Headings to the Articles are inserted for convenience only and shall not affect construction.
- (e) In construing these Articles, "**including**" shall be deemed to mean "**including, without limitation**", general words introduced by the word "**other**" shall not be given a restrictive meaning by reason of the fact that they are preceded by words indicating a particular class of acts, matters or things and

general words introduced by the word "**including**" shall not be given a restrictive meaning by reason of the fact that they are followed by particular examples intended to be embraced by the general words.

- (f) A reference in the Articles to the "**transfer**" of any Share shall mean the transfer of either or both of the legal and beneficial ownership in such Share and/or the grant of an option to acquire either or both of the legal and beneficial ownership in such Share and the following shall be deemed (but without limitation) to be a transfer of a Share:
- (a) any sale or other disposition of a legal or beneficial interest in the Share (including any voting rights attached to the Share);
 - (b) the creation or enforcement of any Encumbrance over a legal or beneficial interest in the Share (including any voting rights attached to the Share);
 - (c) any direction by a person entitled to an allotment or issue of Shares that any such Share be allotted or issued to another person; and
 - (d) any grant of an option to acquire either or both of the legal and beneficial ownership of any Share by any person entitled to such Share.

OBJECTS

3. Unrestricted objects

Nothing in the Articles shall constitute a restriction on the objects of the Company to do (or omit to do) any act and, in accordance with section 31(1) of the Companies Act, the Company's objects are unrestricted.

LIMITED LIABILITY

4. Liability of members

The liability of the members is limited to the amount, if any, unpaid on the Shares held by them.

DIRECTORS' GENERAL POWERS, DUTIES AND RESPONSIBILITIES

5. Directors' general powers

Subject to the Articles, the Directors are responsible for the management of the Company's business, for which purpose they may exercise all the powers of the Company.

6. Shareholders' reserve power

- (a) The Shareholders may, by special resolution, direct the Directors to take, or refrain from taking, specified action.
- (b) No such special resolution invalidates anything which the Directors have done before the passing of the resolution.

7. Directors' duties

- (a) An Investor Director's duty to exercise independent judgment will not be breached if the Investor Director acts in accordance with a direction from the A Shareholder who appointed the Investor Director or takes into account the interests of that A Shareholder.

- (b) In the exercise of an Investor Director's duties, an Investor Director shall not be restricted by any duty of confidentiality to the Company from providing information regarding the Company to any A Shareholder, but a Director who is also a Director of the Director's appointing Shareholder shall owe a strict duty of confidentiality to that appointing Shareholder in relation to confidential information of the Shareholder.

8. Directors may delegate

- (a) Subject to the Articles, the Board may delegate any of the powers which are conferred on it under the Articles:
 - (i) to such person or committee;
 - (ii) by such means (including by power of attorney);
 - (iii) to such an extent;
 - (iv) in relation to such matters or territories; and
 - (v) on such terms and conditions,as it thinks fit.
- (b) If the Board so specifies, any such delegation may authorise further delegation of the Board's powers by any person to whom they are delegated.
- (c) The Board may revoke any delegation in whole or part, or alter its terms and conditions.

9. Committees

- (a) Committees to which the Board delegates any of its powers must follow procedures which are based as far as they are applicable on those provisions of the Articles which govern the taking of decisions by Directors.
- (b) The Board may make rules of procedure for all or any committees, which prevail over rules derived from the Articles if they are not consistent with them.
- (c) In accordance with the provisions of the Investment Deed, the Board shall constitute a remuneration committee and an audit and risk committee. If an Investor Director has been appointed to such a committee then the votes exercisable at any meeting of such committee shall be weighted to ensure that the Investor Director(s) present are at all times able to exercise one more vote than the combined votes of all of the other members of the committee (when taken as a whole). If any Investor Director has not been appointed to such a committee, then Investor Consent shall be required to approve any decision made by such a committee.

DECISION-MAKING BY DIRECTORS

10. Directors to take decisions collectively

- (a) Subject to Article 11, the general rule about decision-making by Directors is that any decision of the Directors must be taken in accordance with this Article 10 or Article 12.
- (b) In the case of an equality of votes at any meeting of the Directors or a committee of the Directors the Chair shall not have a second or casting vote.

- (c) Questions arising at any meeting of the Directors or of any committee of the Directors shall be decided by a majority of votes.
- (d) If:
 - (a) the Company only has one Director; and
 - (b) no provision of the Articles requires it to have more than one Director,the general rule does not apply, and the Director may take decisions without regard to any of the provisions of the Articles relating to Directors' decision-making.

11. Voting by Directors

Subject to these Articles, each Director participating at a meeting of the directors shall have one vote, provided that the votes exercisable by the Investor Director(s) present at a meeting of the directors shall be weighted so as to ensure that the Investor Director(s) present are at all times able to exercise one more vote than the combined votes of all the other members of the Board (when taken as a whole).

12. Unanimous decisions

- (a) A decision of the Directors is taken in accordance with this Article when all Eligible Directors indicate to each other by any means that they share a common view on a matter.
- (b) Such a decision of the Directors may take the form of a resolution in writing, copies of which have been signed by each Eligible Director or to which each Eligible Director has otherwise indicated agreement in writing.
- (c) A decision may not be taken in accordance with this Article if the Eligible Directors would not have formed a quorum at such a meeting.

13. Calling a Directors' meeting

- (a) Any Director may call a Directors' meeting by giving at least five Business Days' notice of the meeting to the Directors or by authorising the Company's secretary (if any) to give such notice unless at least one Investor Director reasonably determines that a meeting is required to be held on short notice given the nature of the business to be discussed.
- (b) Notice of any Directors' meeting must indicate:
 - (i) its proposed date and time;
 - (ii) where it is to take place; and
 - (iii) if it is anticipated that Directors participating in the meeting will not be in the same place, how it is proposed that they should communicate with each other during the meeting.
- (c) Notice of a Directors' meeting must be given to each Director, but need not be in writing.
- (d) Notice of a Directors' meeting need not be given to Directors who waive their entitlement to notice of that meeting, by giving notice to that effect to the Company not more than seven days after the date on which the meeting is held. Where such notice is given after the meeting has been held, that does not affect the validity of the meeting, or of any business conducted at it.

14. **Participation in Directors' meetings**

- (a) Subject to the Articles, Directors (or any Alternate Director) **participate** in a Directors' meeting, or part of a Directors' meeting, when:
 - (i) the meeting has been called and takes place in accordance with the Articles; and
 - (ii) they can each communicate to the others any information or opinions they have on any particular item of the business of the meeting.
- (b) In determining whether Directors are participating in a Directors' meeting, it is irrelevant where any Director is or how they communicate with each other.
- (c) If all the Directors participating in a meeting are not in the same place, they may decide that the meeting is to be treated as taking place wherever any of them is; in the absence of such a decision, the meeting is deemed to take place at the location from where any Director participating from the United Kingdom participates.

15. **Quorum for Directors' meetings**

- (a) At a Directors' meeting, unless a quorum is participating, no proposal is to be voted on, except a proposal to call another meeting.
- (b) Subject to Article 22 and to paragraph (d) below, the quorum for Directors' meetings and committee meetings is two Directors, of whom at least one is an Investor Director (or its alternate) if there is an Investor Director in office at the relevant time.
- (c) If a quorum is not present at the time for which the meeting was called or ceases to be present thereafter, the meeting (the **First Meeting**) shall be adjourned to a day being no more than 10 days from the date of the First Meeting at the same time and place. The Company shall give notice to each Director who did not attend the First Meeting requiring the Director either to attend the adjourned meeting of the Directors or to state in writing the Director's views on the matters to be discussed at that meeting. If any Director having received such notice fails to attend such adjourned meeting those Directors (including at least one Investor Director) who are present at such adjourned meeting shall constitute a quorum.
- (d) For the purpose of any Directors' meeting (or part of a meeting) held in accordance with Article 21 to authorise a Director's conflict of interest, or Article 22(c) to consider any matter referred to in that Article, if only one Eligible Director is in office, the quorum is one Eligible Director.
- (e) If the total number of Directors for the time being in office is less than the quorum required, the Director or Directors in office must not take any decision other than a decision:
 - (i) to request the relevant Shareholders to appoint one or more further Directors under Article 23; or
 - (ii) to call a general meeting so as to enable the Shareholders to appoint further Directors.

16. **Chairing of Directors' meetings**

- (a) The Chair appointed under Article 25 shall chair Directors' meetings.
- (b) If the Chair is not participating in a Directors' meeting within ten minutes of the time at which it was to start, the participating Directors (including one Investor Director) may appoint one of themselves to chair it.

17. Records of decisions to be kept

The Directors must ensure that the Company keeps a record, in writing, for at least 10 years from the date of the decision recorded, of every unanimous or majority decision taken by the Directors.

18. Directors' discretion to make further rules

Subject to the Articles, the Directors may make any rule which they think fit about how they take decisions, and about how such rules are to be recorded or communicated to Directors.

DIRECTORS' INTERESTS

19. Directors' interests in relation to transactions or arrangements with the Company

The relevant provisions of the Companies Act (including without limitation sections 177 and 182 of the Companies Act) shall apply in relation to declarations of interests in proposed and existing transactions or arrangements with the Company.

20. Inherent Conflicts

- (a) An **Inherent Conflict** is a situation where a Director has, or can have, a direct or indirect interest that conflicts, or possibly may conflict, with the interests of the Company in circumstances where that situation arises as a direct or indirect result of the Director's relationship with the Shareholder who appointed the Director (or any of that Shareholder's Subsidiaries).
- (b) A Director is authorised to have an interest which constitutes an Inherent Conflict.
- (c) A Director who is subject to an Inherent Conflict may, subject to Article 22, vote as a Director (and be counted in the quorum) on a decision concerning any such situation and attend a meeting, or participate in any discussion, relating to that situation and receive information or advice received by the Company on such situations.
- (d) Any reference in paragraph (a) above to a conflict of interest includes a conflict of interest and duty and a conflict of duties.

21. Directors' interests other than in relation to transactions or arrangements with the Company

- (a) If a situation other than one relating to an Inherent Conflict (a **Relevant Situation**) arises in which a Director has, or can have, a direct or indirect interest that conflicts, or possibly may conflict, with the interests of the Company (including, without limitation, in relation to the exploitation of any property, information or opportunity, whether or not the Company could take advantage of it but excluding any situation which cannot reasonably be regarded as likely to give rise to a conflict of interest) the following provisions shall apply if the conflict of interest does not arise in relation to a transaction or arrangement with the Company:
 - (i) if the Relevant Situation arises from the appointment or proposed appointment of a person as a Director of the Company:
 - (A) the Directors (other than the Director, and any other Director with a similar interest, who shall not be counted in the quorum at the meeting and shall not vote on the resolution), with Investor Consent; or
 - (B) the Shareholders (by ordinary resolution or by notice in writing given to the Company by the holders of a majority of the Ordinary Shares of the Company),

may resolve to authorise the appointment of the Director and the Relevant Situation on such terms as they may determine;

- (ii) if the Relevant Situation arises in circumstances other than in paragraph (i) above:
 - (A) the Directors (other than the Director and any other Director with a similar interest who shall not be counted in the quorum at the meeting and shall not vote on the resolution), with Investor Consent; or
 - (B) the Shareholders (by ordinary resolution or by notice in writing given to the Company by the holders of a majority of the Ordinary Shares of the Company),

may resolve to authorise the Relevant Situation and the continuing performance by the Director of the Director's duties on such terms as they may determine.

- (b) Any reference in paragraph (a) above to a conflict of interest includes a conflict of interest and duty and a conflict of duties.
- (c) Any terms determined by the Directors or the Shareholders under paragraph (a)(i) or (a)(ii) may be imposed at the time of the authorisation or may be imposed or varied subsequently by either the Directors (with Investor Consent) or the Shareholders and may include (without limitation):
 - (i) whether the interested Directors may vote (and be counted in the quorum at any meeting) in relation to any decision relating to the Relevant Situation;
 - (ii) the exclusion of the interested Directors from all information and discussion by the Company of the Relevant Situation; and
 - (iii) (without prejudice to the general obligations of confidentiality) the application to the interested Directors of a strict duty of confidentiality to the Company for any confidential information of the Company in relation to the Relevant Situation.
- (d) Any authorisation given under paragraph (a)(i) or (a)(ii) may be withdrawn by either the Directors (with Investor Consent) or the Shareholders by giving notice to the Director concerned.
- (e) An interested Director must act in accordance with any terms determined by the Directors or the Shareholders under paragraph (a)(i) or (a)(ii).
- (f) Except as specified in paragraph (a) above, any proposal made to the Directors and any authorisation by the Directors (with Investor Consent) in relation to a Relevant Situation shall be dealt with in the same way as any other matter may be proposed to and decided by the Directors in accordance with the Articles.
- (g) Any authorisation of a Relevant Situation given by the Directors (with Investor Consent) or the Shareholders under paragraph (a) above may provide that, where the interested Director obtains (other than through the Director's position as a Director of the Company) information that is confidential to a third party, the Director will not be obliged to disclose it to the Company or to use it in relation to the Company's affairs in circumstances where to do so would amount to a breach of that confidence.
- (h) (i) If the Directors (with Investor Consent) make an authorisation under paragraph (a) above, impose or vary the terms of an authorisation under paragraph (c) above, or withdraw an authorisation under paragraph (d) above, they shall, as soon as reasonably practicable, notify the Shareholders of this fact and provide, where applicable, any relevant particulars regarding the authorisation or its terms.

(ii) If the Shareholders make an authorisation under paragraph (a) above, impose or vary the terms of an authorisation under paragraph (c) above, or withdraw an authorisation under paragraph (d) above, they shall, as soon as reasonably practicable, notify the Directors of this fact and provide, where applicable, any relevant particulars regarding the authorisation or its terms.

(i) (i) A Director shall, as soon as reasonably practicable, declare the nature and extent of the Director's interest in a Relevant Situation within paragraph (a)(i) or (a)(ii) above to the other Directors and the Shareholders.

Failure to comply with this requirement does not affect the underlying duty to make the declaration of interest.

(ii) If a declaration of interest in relation to a Relevant Situation proves to be, or becomes, inaccurate or incomplete, a further declaration must be made.

22. Directors' interests generally and voting

(a) Subject to the Companies Act and to Articles 19 and 21, a Director notwithstanding holding the office of Director:

(i) may be a party to, or otherwise interested or participate in, any transaction or arrangement with the Company or in which the Company is otherwise interested;

(ii) may act personally or by the Director's firm in a professional capacity for the Company (except as auditor) and the Director or the Director's firm shall be entitled to remuneration as if the Director were not a Director;

(iii) may be a Director or other officer of, or Employed by, or a party to any transaction or arrangement with, or otherwise interested in, any body corporate promoted by the Company or in which the Company is otherwise interested; and

(iv) shall not, by reason of holding the office of Director (or of the fiduciary relationship established by holding that office), be accountable to the Company for any remuneration, profit or other benefit resulting from any Inherent Conflict authorised under Article 20, any Relevant Situation authorised under Article 21 or any interest permitted under paragraph (a)(i), (a)(ii), or (a)(iii) above, and no contract, transaction or arrangement shall be liable to be avoided on the grounds of any Director having an interest authorised under Article 20, Article 21 or permitted under paragraph (a)(i), (a)(ii), or (a)(iii) above.

(b) Subject to Articles 19 and 21 and to paragraph (c) below, a Director shall be entitled to vote on any decision concerning any matter in which the Director has, directly or indirectly, an interest or a duty.

(c) The provisions of paragraph (b) above shall not apply if or to the extent that any matter to be decided upon by the Directors relates to:

(i) the Company or any of its Subsidiaries enforcing rights under or taking any action against the relevant Shareholder in relation to any matter arising under any agreement from time to time entered into between the Company or any of its Subsidiaries and a Shareholder;

(ii) the Company defending itself against any action taken against it by the relevant Shareholder;

(iii) the Company (with Investor Consent) taking any action against a Director appointed by the relevant Shareholder in relation to any (or any alleged) breach of duty by that Director; or

- (iv) the Company defending itself against any action taken against it by a Director appointed by the relevant Shareholder.

In those circumstances, the Director appointed by the relevant Shareholder shall not be entitled to:

- (i) attend any meeting to discuss or participate in any discussion of that matter;
 - (ii) receive information or advice received by the Company on such matter; or
 - (iii) vote (or be counted in the quorum at any meeting) in relation to such matter.
- (d) In the case of an Alternate Director, an interest of the Alternate's Appointor shall be treated as an interest of the Alternate in addition to any interest which the Alternate otherwise has.
 - (e) Subject to the Companies Act, the Company may, by ordinary resolution or by notice in writing given to the Company by the holders of a majority of the Ordinary Shares of the Company, suspend or relax the provisions of this Article to any extent or ratify any contract, transaction or arrangement not duly authorised by reason of a contravention of this Article.

APPOINTMENT, REMOVAL AND REMUNERATION OF DIRECTORS

23. Number of Directors

The number of Directors (including Investor Directors but excluding Alternate Directors) shall not, unless otherwise determined by an ordinary resolution of the Company, be subject to any maximum but shall not be less than two.

24. Appointment and removal of Directors and Investor Directors by Majority A Holders

The Majority A Holders are entitled, from time to time, by notice in writing given to the Company, to appoint any number of persons as Directors of the Company and remove from office any such Director and, if desired, appoint another in such Director's place. Directors so appointed may, if so specified by the Majority A Holders, be designated as **Investor Directors**.

25. Appointment and removal of Chair

The Chair of the Board shall be such Director as may from time to time be nominated as such by the Majority A Holders, who may remove such person from office and appoint another in such Director's place.

26. Observer

The Majority A Holders may also appoint an Observer. An Observer must be given, and is entitled access to, the same documents and information as a director of the Company, and is entitled to receive notice of and attend and speak at, but not to vote at, meetings of the board of the Company. This right extends to meetings of any committee of Company. This right shall extend to meeting of the Boards of such Subsidiaries of the Company as the Observer may specific and to meetings of such committees of such Subsidiaries as the Observer may specify. No fee (or additional fee) shall be payable by the Company to, or in respect of, any person acting as an Observer.

27. Formalities of appointment

Every appointment or removal under Articles 24 to 26 shall be made in writing signed by or on behalf of the Majority A Holders and shall take effect on and from the date on which the notice of appointment or removal is lodged at the registered office of the Company or produced at a meeting of the Directors.

28. Termination of Director's appointment

A person ceases to be a Director as soon as:

- (a) that person is removed from office in accordance with the provisions of these Articles;
- (b) that person ceases to be a Director by virtue of any provision of the Companies Act or is prohibited from being a Director by law;
- (c) a bankruptcy order is made against that person;
- (d) a composition is made with that person's creditors generally in satisfaction of that person's debts;
- (e) a registered medical practitioner who has examined the Director gives a written opinion to the Company stating that that person has become physically or mentally incapable of acting as a Director and may remain so for more than three months; or
- (f) notification is received by the Company from the Director that the Director is resigning from office, and such resignation has taken effect in accordance with its terms.

29. Directors' services and remuneration

- (a) Directors may undertake any services for the Company that the Directors decide and the Company may enter into a contract of service with any Director on such terms as the Directors think fit.
- (b) Directors are entitled to such remuneration as the Board (acting with Investor Consent) determines:
 - (i) for their services to the Company as Directors; and
 - (ii) for any other service which they undertake for the Company.
- (c) Subject to the Articles, a Director's remuneration may take any form.
- (d) Unless the Directors decide otherwise (with Investor Consent), Directors' remuneration accrues from day to day.

30. Directors' expenses

The Company may pay any reasonable expenses (including, without limitation, travel, subsistence and accommodation expenses) which the Investor Directors, Alternate Directors, Observers (if any) properly incur in connection with the performance of their duties as an Investor Director, Alternate Director or Observer (as applicable), including, without limitation, their attendance at:

- (a) meetings of Directors or committees of Directors;
- (b) general meetings; or
- (c) separate meetings of the holders of any class of Shares or of debentures of the Company,

or otherwise in connection with the exercise of their powers and the discharge of their responsibilities in relation to the Company, following the submission of an expenses claim in accordance with the expenses policy of the Company or such other Group Company.

ALTERNATE DIRECTORS

31. Appointment and removal of Alternates

- (a) Any Investor Director (the **Appointor**) may appoint an any person as their **Alternate** to:
 - (i) exercise that Investor Director's powers; and
 - (ii) carry out that Investor Director's responsibilities,in relation to the taking of decisions by the Investor Directors in the absence of the Alternate's Appointor, and may remove a person appointed as an Investor Director's Alternate.
- (b) Any appointment or removal of an Alternate must be effected by notice in writing to the Company signed by the Appointor, or in any other manner approved by the Directors.
- (c) The notice must:
 - (i) identify the proposed Alternate; and
 - (ii) in the case of a notice of appointment, contain a statement signed by the proposed Alternate that the proposed Alternate is willing to act as the Alternate of the Director giving the notice.
- (d) No fee (or additional fee) shall be payable by the Company to, or in respect of, any person acting as an Investor Director's alternate.

32. Rights and responsibilities of Alternate Directors

- (a) Subject to the Articles, an Alternate may act as an **Alternate Director** to more than one Investor Director and has the same rights, in relation to any decision of the Directors as the Alternate's Appointor.
- (b) Except as the Articles specify otherwise, Alternate Directors:
 - (i) are deemed for all purposes to be Directors and Investor Directors (where applicable);
 - (ii) are liable for their own acts and omissions;
 - (iii) are subject to the same restrictions as their Appointors; and
 - (iv) are not deemed to be agents of or for their Appointors,and, in particular, each Alternate Director shall be entitled to receive notice of all Directors' meetings and of all committee meetings of Directors of which the Alternate Director's Appointor is a member.
- (c) Subject to the Articles, a person who is an Alternate Director but not a Director:
 - (i) may be counted as participating for the purposes of determining whether a quorum is present (but only if that person's Appointor is not participating); and
 - (ii) may otherwise participate in a unanimous decision of the Directors (but only if the Alternate Director's Appointor is an Eligible Director in relation to that decision and is not participating).

No Alternate may be counted as more than one Director for such purposes.

33. Alternates voting at Directors' meetings

Subject to the Articles, a Director who is also an Alternate Director has an additional vote at a Directors' meeting on behalf of each Appointor who:

- (a) is not participating in the Directors' meeting; and
- (b) would have been an Eligible Director if participating in it personally.

No Alternate may be counted as more than one Director for the purpose of determining whether a quorum is present.

34. Termination of alternate directorship

Subject to any other decision by the Directors, an Alternate Director's appointment as an Alternate terminates:

- (a) when the Alternate's Appointor revokes the appointment by notice to the Company in writing specifying when it is to terminate;
- (b) on the occurrence in relation to the Alternate of any event which, if it occurred in relation to the Alternate's Appointor, would result in the termination of the Appointor's appointment as a Director;
- (c) on the death of the Alternate's Appointor;
- (d) when the Alternate's Appointor's appointment as a Director terminates; or
- (e) (other than in relation to an Alternate appointed by an Investor Director) where the Directors so decide.

SHARES – GENERAL

35. Share capital

The share capital of the Company is divided into Priority Shares, A Shares, B Shares, C Shares, and D Shares. The Priority Shares, A Shares, B Shares, C Shares and D Shares shall be separate classes of Shares and shall have the rights and restrictions set out in these Articles.

36. Purchase of own shares

Subject to the Companies Act and to any rights conferred on the holders of any class of Shares, the Company may purchase all or any of its Shares of any class, including any redeemable Shares, in each case issued from time to time.

37. All Shares to be fully paid up

- (a) No share is to be issued for less than the aggregate of its nominal value and any premium to be paid to the Company in consideration for its issue.
- (b) This does not apply to Shares taken on the formation of the Company by the subscribers to the Company's memorandum.

38. Powers to allot Shares

- (a) Subject to the Articles but without prejudice to paragraph (b) below or to the rights attached to any existing Share, the Company may (with Investor Consent) authorise the Directors to issue further classes of shares with such rights or restrictions as may be determined by ordinary resolution.
- (b) The Directors, with Investor Consent, are generally and unconditionally authorised, in accordance with section 551 of the Companies Act, to exercise all the powers of the Company to allot shares in the Company or to grant rights to subscribe for or convert any security into shares in the Company, up to a maximum nominal amount of £10,000,000.
- (c) The authority contained in paragraph (b) above shall expire on the day five years after the date the adoption of these Articles but the Company may, before the authority expires and with Investor Consent, make an offer or agreement which would or might require shares to be allotted or rights to be granted after it expires.
- (d) Sections 561 and 562 of the Companies Act are excluded.
- (e) The Company may, with Investor Consent, authorise the Directors to issue shares which are to be redeemed, or are liable to be redeemed at the option of the Company or the holder, and the Company by ordinary resolution may, with Investor Consent, determine the terms, conditions and manner of redemption of any such shares.
- (f) If the rights and restrictions attaching to shares are determined by ordinary resolution, pursuant to this Article, those rights and restrictions shall apply, in particular in place of any rights or restrictions that would otherwise apply by virtue of the Companies Act in the absence of any provisions in the Articles of a Company, as if those rights and restrictions were set out in the Articles.

39. Company not bound by less than absolute interests

Except as required by law, no person is to be recognised by the Company as holding any Share upon any trust, and except as otherwise required by law or the Articles, the Company is not in any way to be bound by or recognise any interest in a Share other than the holder's absolute ownership of it and all the rights attaching to it.

40. Share certificates

- (a) The Company must issue each Shareholder, free of charge, with one or more certificates in respect of the Shares which that Shareholder holds.
- (b) Every certificate must specify:
 - (i) in respect of how many Shares, of what class, it is issued;
 - (ii) the nominal value of those Shares;
 - (iii) that the Shares are fully paid; and
 - (iv) any distinguishing numbers assigned to them.
- (c) No certificate may be issued in respect of Shares of more than one class.
- (d) If more than one person holds a Share, only one certificate may be issued in respect of it.
- (e) Certificates must:

- (i) have affixed to them the Company's common or official seal and in the case of an official seal, unless otherwise determined by the Directors, the certificate does not need to be signed; or
- (ii) be otherwise executed in accordance with the Companies Act.

41. Replacement share certificates

- (a) If a certificate issued in respect of a Shareholder's Shares is:
 - (i) damaged or defaced; or
 - (ii) said to be lost, stolen or destroyed,
 that Shareholder is entitled to be issued with a replacement certificate in respect of the same Shares.
- (b) A Shareholder exercising the right to be issued with such a replacement certificate:
 - (i) may at the same time exercise the right to be issued with a single certificate or separate certificates;
 - (ii) must return the certificate which is to be replaced to the Company if it is damaged or defaced; and
 - (iii) must comply with such conditions as to evidence, indemnity and the payment of a reasonable fee as the Directors decide.

SHARE RIGHTS AND RESTRICTIONS

42. Income rights

- (a) Subject to:
 - (i) any restrictions contained in the Finance Documents;
 - (ii) the Board (with Investor Consent) recommending the payment of the same; and
 - (iii) the remaining provisions of this Article 42,
 any Available Profits which the Company may determine to distribute in respect of any financial year shall be distributed among the holders of the A Shares, B Shares and C Shares (*pari passu* as if the same constituted one class of share) according to the number of shares held by the relevant Shareholder at the relevant time.
- (b) The Priority Shares shall have no right to participate in any distribution which the Company may determine with respect to any other Shares in accordance with paragraph (a) above, but, subject to the Board (acting reasonably) recommending payment of the same (with Investor Consent) and without prejudice to Article, the Company may determine to distribute Available Profits among the holders of the Priority Shares (*pro rata* to the number of the Priority Shares held by each Priority Shareholder) up to an amount equal to the Priority Amount as at the time of any such distribution.
- (c) The D Shares shall have no right to participate in any distribution which the Company may determine with respect to any other Shares in accordance with Article 42(a).

43. Waterfall Event

- (a) The rights as regards return of capital attaching to each class of Shares shall be as set out in this Article 43.
- (b) On an Exit or return of capital to Shareholders (a **Waterfall Event**), the cash proceeds distributable or payable to holders of Securities after payment of all third party transaction fees, costs and expenses properly incurred by the Group in connection with the Waterfall Event (the **Value**) shall be apportioned between the holders of Securities in the following manner:

- (i) first, in paying:

- (A) to the holders of the Priority Shares, the Priority Subscription Amount in respect of all such Priority Shares held by them (the **Priority Share Outstanding Subscription Price**); and
- (B) to the holders of Loan Notes, the amount equal to the entire principal outstanding amount of the Loan Notes held by them (the **Loan Note Outstanding Principal**),

such payments in paragraphs (b)(i)(A) and (b)(i)(B) above to be made *pari passu* as if the Priority Shares and the Loan Notes constituted one class of Security and as between the holders of Priority Shares and the Loan Notes, *pro rata* to the aggregate amount of the Priority Share Outstanding Subscription Price and Loan Note Outstanding Principal (as applicable) owed to them in respect of the Priority Shares and Loan Notes held by each relevant holder respectively;

- (ii) secondly, to the extent any amounts forming part of the Value remain to be distributed following the operation of paragraph (b)(i) above, in paying:

- (A) to the holders of the Priority Shares, the Priority Amount accrued as at the date of the Waterfall Event in respect of all such Priority Shares held by them (the **Outstanding Priority Amount**); and
- (B) to the holders of Loan Notes, the amount equal to all unpaid arrears or accruals of any interest as at the date of the Waterfall Event in respect of the Loan Notes held by them (the **Outstanding Loan Note Interest**),

such payments in paragraphs (b)(i)(A) and (b)(i) (B) above to be made *pari passu* as if the Priority Shares and the Loan Notes constituted one class of Security and as between the holders of Priority Shares and the Loan Notes, *pro rata* to the aggregate amount of the Outstanding Priority Amount and Outstanding Loan Note Interest (as applicable) owed to them in respect of the Priority Shares and Loan Notes held by each relevant holder respectively; and

- (iii) thirdly, to the extent any amounts forming part of the Value remain to be distributed following the operation of paragraphs (b)(i) above and (b)(ii) above, all such amounts up to the Initial Amount shall be distributed among the A Shareholders, B Shareholders and C Shareholders *pari passu* as if the A Shares, B Shares and C Shares constituted one class of Share, *pro rata* to the number of A Shares, B Shares and C Shares held by them respectively; and

- (iv) fourthly, to the extent any amounts forming part of the Value remain to be distributed following the operation of paragraphs (b)(i) and (b)(ii) above, all such amounts shall be allocated to the A Shares, B Shares, C Shares and D Shares in an amount equal to those classes' respective Balance Percentages, with the amount allocated to each class being distributed *pro rata* among the holders of that class.

(c) The Balance Percentage applicable to the D Shares in accordance with Article 43(b)(iv) (the **D Balance Percentage**) shall be:

- (i) calculated on an increasing straight line basis between zero (0) percentage points (where the aggregate amount of the Value distributed to the A Shareholders, B Shareholders and C Shareholders in accordance with Article 43(b)(iii) results in the Investors' Group actually realising in cash terms, when aggregated with all Investors Equity Proceeds received in cash terms by the Investors' Group from the Completion Date, an Investors Return of 3) and up to the maximum percentage points of five (5) (where the aggregate amount of the Value distributed to the A Shareholders, B Shareholders and C Shareholders in accordance with Article 43(b) (including, for the avoidance of doubt, that Value which remains to be distributed to the A Shareholders, B Shareholders and C Shareholders above the Initial Amount) results in the Investors' Group actually realising in cash terms, when aggregated with all Investors Equity Proceeds received in cash terms by the Investors' Group from the Completion Date, an Investors Return of 4 or more);
- (ii) in circumstances where the aggregate amount of the Value distributed to the A Shareholders, B Shareholders and C Shareholders in accordance with Article 43(b) (including, for the avoidance of doubt, that Value which remains to be distributed to the A Shareholders, B Shareholders and C Shareholders above the Initial Amount) results in the Investors' Group actually realising in cash terms, when aggregated with all Investors Equity Proceeds received in cash terms by the Investors' Group from the Completion Date, an Investors Return of more than 4, no greater than five (5) percentage points (regardless of how much above the Investors Return of 4 the Investors' Group actually achieves); and
- (iii) zero (0) percentage points unless the aggregate amount of the Value distributed to the A Shareholders, B Shareholders and C Shareholders in accordance with Article 43(b) results in the Investors' Group actually realising in cash terms, when aggregated with all Investors Equity Proceeds received in cash terms by the Investors' Group from the Completion Date, an IRR of 25% or more. For the avoidance of doubt, in the circumstances where the Investors' Group achieves an IRR of 25% or more, then the D Balance Percentage shall be determined in accordance with Article 43(c)(i) above.

(d) For the purposes of this Article 43 the following definitions shall apply:

Balance Percentage means:

- (i) for the A Shares, the percentage that the A Shares in aggregate constitute of the aggregate of: (A) the total number of A Shares, B Shares and C Shares in issue immediately prior to the Exit; and (B) minus their *pro rata* proportion (as between the A Shares in aggregate and the B Shares in aggregate) of the D Balance Percentage (the **A Balance Percentage**);
- (ii) for the B Shares, the percentage that the B Shares in aggregate constitute of the aggregate of: (A) the total number of A Shares, B Shares and C Shares in issue immediately prior to the Exit; and (B) minus their *pro rata* proportion (as between the A Shares in aggregate and the B Shares in aggregate) of the D Balance Percentage (the **B Balance Percentage**);
- (iii) for the C Shares, the percentage that equals: (A) 100 per cent; (B) *minus* the A Balance Percentage; (C) *minus* the B Balance Percentage; and (D) *minus* the D Balance Percentage; and
- (iv) for the D Shares, the D Balance Percentage as calculated in accordance with Article 43(c);

Initial Amount means the aggregate amount of the Value required to be distributed to the A Shareholders, B Shareholders and C Shareholders in accordance with Article 43(b)(iii) that would

result in the Investors' Group actually realising in cash terms, when aggregated with all Investors Equity Proceeds received in cash by the Investors' Group from the Completion Date, both (A) an Investors Return of 3 and (B) an IRR of 25%;

Investors Equity Proceeds means the aggregate cash amount actually received in cash (without double counting) by the members of the Investors' Group in respect of their Securities, expressed in GBP, including:

- (i) any cash proceeds, dividends, distributions, interest, repayments, redemption amounts or returns of capital received by any member of the Investors' Group with respect to its Securities;
- (ii) subject to paragraph (iii) below, any cash received by any member of the Investors' Group from a third party purchaser of its Securities on an Exit or otherwise; and
- (iii) any cash received by any member of the Investors' Group from any non-cash consideration issued to any member of the Investors' Group on a Waterfall Event;

but in all cases:

- (iv) excluding any cash received by any member of the Investors' Group from any purchaser of its Securities pursuant to any Syndication;
- (v) excluding any arrangement, consultancy or monitoring fees paid pursuant to, and in accordance with the terms of, the Investment Deed;
- (vi) after the deduction of all taxes payable by the Investors directly associated with the Exit (including any irrecoverable value added tax or stamp duty or their equivalents but not including any taxes on the income or capital gains of any member of the Investors' Group); and
- (vii) the Investors Equity Proceeds shall be calculated after having taken into account the operation of this Article 43 and, therefore, such calculations shall be made on an iterative basis;

Investors Invested Equity means the aggregate of all amounts invested in the Group, expressed in GBP, from time to time by the Investors' Group, whether for subscription or acquisition of Securities (excluding any Securities subsequently transferred by any member of the Investors' Group to any purchaser pursuant to any Syndication) and **Investment** for this purpose means, for the avoidance of doubt, the making of any cash payment out by any member of the Investors' Group regardless of and without reference to any cash amounts previously received as Investors Equity Proceeds or otherwise by any member of the Investors' Group;

Investors Return means, as at any date, the number given by dividing (i) the aggregate Investors Equity Proceeds then actually received in cash by the Investors' Group by (ii) the aggregate Investors Invested Equity then paid out by the Investors' Group up to and including such date; and

IRR means the annual percentage rate by which the Investors Invested Equity (expressed as a negative number) and the Investors Equity Proceeds (expressed as a positive number) are discounted back (based on a daily computation) from the first date in which an Investors Invested Equity was paid out to arrive at an aggregate net present value of zero at the date of the Exit.

- (e) The Board shall give at least 10 Business Days written notice to the Investors of the date on which any Waterfall Event is expected to complete. Such notice shall provide all available information which is reasonably required in order to perform the calculations set out in Article (b) above. At least five Business Days prior to the completion of the Waterfall Event, the Investors shall notify the Board in

writing of its calculation and the Investors and Manager and Minority Co-Investor Representative shall endeavour to agree the calculation in the event of any discrepancy between the Board's and Investors' calculation.

- (f) On each occasion on which any deferred consideration is actually received in cash from a Waterfall Event or cash is actually received from any non-cash consideration issued to holders of Securities from a Waterfall Event, the provisions of this Article 43 will be reopened and reapplied by the Board as at the date of such cash receipt so as to include such amount actually realised in cash as part of the calculation of Value (for the avoidance of doubt, based on both the actual amount of cash received and the actual date on which such payment is received in cash for the purposes of such calculation). Such consideration will be apportioned between each holder of Securities so as to reflect such revised calculation of the Value, having regard to the Value already allocated to them in respect of the previous application of Article 43 and (if applicable) the allocation of Value as per the Shareholders' Balance Percentages in accordance with Article 43(b)(iv), provided always that no Value already allocated will be reallocated (such that this Article 43(g) will only serve to allocate the deferred consideration later received in cash).
- (g) In the event that any distributions of Value under this Article 43 are made on more than one Waterfall Event:
 - (i) each distribution of Value shall be made in accordance with this Article 43 as if it were the only amount to be distributed and without regard to the amount of any Value expected to be distributed on any subsequent Waterfall Event; and
 - (ii) a distribution of Value on any subsequent Waterfall Event shall be made in accordance with this Article 43 after taking into account any previous distributions of Value made under this Article 43.

44. Voting

- (a) Every holder of A Shares, every holder of B Shares, every holder of C2 Shares and every holder of D2 Shares shall have one vote in respect of every Share held by that holder.
- (b) The Priority Shares, C1 Shares and D1 Shares shall carry no right to receive notice of, attend or vote in any circumstances at any general meeting of the Company or vote for the purposes of any written resolution of the Company (other than in respect of a variation of the class rights of the Priority Shares, C1 Shares or D1 Shares (as applicable) in accordance with Article 45).

VARIATION OF SHARE RIGHTS

45. Variation of rights

- (a) Subject to paragraph (c) below, whenever the capital of the Company is divided into different classes of Shares, all or any of the rights for the time being attached to any class of Shares in issue may from time to time (whether or not the Company is being wound up) be varied with the consent in writing of the holders of three-fourths in nominal value of the issued Shares of that class or with the sanction of a special resolution passed at a separate general meeting of the holders of those Shares.
- (b) All the provisions of these Articles relating to general meetings of the Company or to the proceedings at general meetings shall apply, *mutatis mutandis*, to every such separate general meeting, except that:
 - (i) the quorum at any such meeting (other than an adjourned meeting) shall be two members present in person or by proxy holding at least one-third in nominal amount of the issued Shares of the class;

- (ii) at an adjourned meeting the quorum shall be one member present in person or by proxy holding Shares of the class;
 - (iii) every holder of Shares of the class shall, on a poll, have one vote in respect of every Share of the class held by that holder; and
 - (iv) a poll may be demanded by any one holder of Shares of the class whether present in person or by proxy.
- (c) The rights attached to the B Shares, C Shares and D Shares shall be deemed to not be varied by:
- (i) the creation or issue of further Shares ranking *pari passu* with them or in priority to them; or
 - (ii) the purchase or redemption by the Company of any of its own Shares; or
 - (iii) any alteration or conversion or reclassification or re-designation of the ordinary share capital of the Company to create one class of ordinary shares ranking *pari passu* in all respects (including as regards income and capital) in connection with a Listing or Restructuring; or
 - (iv) the adoption of new Articles on and with effect from a Listing or Restructuring, provided that, in the case of a Listing, an investment bank has confirmed to the Company that such Articles comply with the rules of the relevant listing authority and are otherwise suitable for a listed company; or
 - (v) the passing of any other resolutions necessary to facilitate a Listing or Restructuring,
- provided that any restriction under paragraphs (i) to (v) above preserves the economic position of the A Shares, B Shares, C Shares and D Shares relative to each other.

TRANSFERS OF SHARES

46. Share transfers – general

- (a) Except in accordance with the provisions these Articles, no person shall be entitled to transfer any interest in any Shares or any beneficial interest therein without Investor Consent (and, subject to Article 54 where applicable, the Majority A Holders shall be free and entitled to give Investor Consent for a transfer of any Share by the Majority A Holders or any other holder of Shares).
- (b) The Directors shall refuse to register a proposed transfer not made under or permitted or required by these Articles.
- (c) The Directors may also refuse to register a transfer of a Share on which the Company has a lien.
- (d) If the Directors refuse to register the transfer of a Share, the instrument of transfer must be returned to the transferee with the notice of refusal, unless they suspect that the proposed transfer may be fraudulent.
- (e) A person executing an instrument of transfer of a Share is deemed to remain the holder of the Share until the name of the transferee is entered in the register of members in respect of it.
- (f) Shares may be transferred by means of an instrument of transfer in any usual form or any other form approved by the Directors, which is executed by or on behalf of the transferor.
- (g) No fee may be charged for registering any instrument of transfer or other document relating to or affecting the title to any Share.

- (h) The Company may retain any instrument of transfer which is registered.
- (i) Every holder of Shares in the Company (whether or not the beneficial owner of those Shares) shall ensure that that holder is at all times able and empowered to transfer with full title guarantee the Shares held by that holder if so required by these Articles.

47. Transmission of Shares

- (a) If title to a Share passes to a transmittee, the Company may only recognise the transmittee as having any title to that Share.
- (b) A transmittee who produces such evidence of entitlement to Shares as the Directors may properly require:
 - (i) may, subject to the Articles, choose either to become the holder of those Shares or (subject to Investor Consent) to have them transferred to another person; and
 - (ii) subject to the Articles, and pending any transfer of the Shares to another person (subject to Investor Consent), has the same rights as the holder had.
- (c) But transmittees do not have the right to attend or vote at a general meeting, or agree to a proposed written resolution, in respect of Shares to which they are entitled, by reason of the holder's death or bankruptcy or otherwise, unless they become the holders of those Shares.

48. Exercise of transmittees' rights

- (a) Transmittees who wish to become the holders of Shares to which they have become entitled must notify the Company in writing of that wish.
- (b) Subject to the Articles, if the transmittee wishes to have a Share transferred to another person, the transmittee must execute an instrument of transfer in respect of it.
- (c) Any transfer made or executed under this Article is to be treated as if it were made or executed by the person from whom the transmittee has derived rights in respect of the Share, and as if the event which gave rise to the transmission had not occurred.

49. Transmittees bound by prior notices

If a notice is given to a Shareholder in respect of Shares and a transmittee (or a transferee nominated by such transmittee pursuant to Article 48) is entitled to those Shares, the transmittee (or transferee) is bound by the notice if it was given to the Shareholder before the transmittee's (or transferee's) name has been entered in the register of members.

50. Permitted transfers

- (a) Shares or any beneficial interest therein may only be transferred:
 - (i) if the transfer is a Manager and Minority Co-Investor Permitted Transfer;
 - (ii) by any Minority Co-Investor, subject to and in accordance with the provisions of Article 51;
 - (iii) otherwise with prior written Investor Consent (subject to Article 54 where applicable);
 - (iv) by any partner, unitholder, shareholder, or other participant in, or operator, manager or custodian of, any Fund (a **Fund Participant**) (or by any trustee or nominee for any such Fund

Participant) of any interest in such Fund to any person who is, or as a result of such transfer becomes, a Fund Participant;

- (v) by the creation or enforcement of any Encumbrance over the legal or equitable interest in any Shares registered in the name of an Investor or any of its Affiliates or over any interest in a Fund, and a Director shall not refuse to register such a transfer;
 - (vi) by an Investor or any of its Affiliates to any third party lender on an enforcement action by such third party lender in relation to any Encumbrance pursuant to any third party finance arrangements, and a Director shall not refuse to register such a transfer;
 - (vii) by any Investor to any non-executive director of any Group Company or to any Manager or Minority Co-Investor;
 - (viii) in accordance with the provisions of Article 52;
 - (ix) in accordance with the provisions of Article 53;
 - (x) pursuant to the acceptance of a Tag Along Offer relating to those Shares;
 - (xi) in accordance with the provisions of Article 55;
 - (xii) in accordance with the Strip Leaver provisions in Article 56 or Sweet Leaver provisions in Article 57;
 - (xiii) in any other circumstances when a transfer is required under these Articles; or
 - (xiv) in accordance with clause 15 (Issues and Transfers of Securities) or clause 28 (Exit) of the Investment Deed.
- (b) **Manager and Minority Co-Investor Permitted Transfer** means any of the following, in each case for bona fide management of the relevant Manager or Minority Co-Investor's tax affairs only:
- (i) a transfer by an individual Shareholder of up to 50% of that Shareholder's Shares to a Family Member or to the trustees of a Family Trust;
 - (ii) a transfer by the trustees of a Family Trust, on any change of trustees, of any Shares held by them in that capacity to the new trustees of that Family Trust; and
 - (iii) a transfer by the trustees of a Family Trust of any Shares held by them in that capacity to a person who has an immediate beneficial interest under the Family Trust or to a Connected Person of that beneficiary or to the settlor.

51. **Minority Co-Investor Approval Procedure**

- (a) Save in the case of a permitted transfer pursuant to Article 50, any transfer of any Securities by a Minority Co-Investor shall require the prior approval of the Board (acting with Investor Consent) in accordance with this Article 51 (the **Approval**) and provided that no vested C2 Shares or vested D2 Shares shall be transferred by a Minority Co-Investor prior to any applicable Minority Co-Investor Buyback Date.
- (b) Any Minority Co-Investor who wishes to transfer any of their Securities shall first provide written notice to the Board and the Investors (a **Minority Co-Investor Transfer Notice**). Any Minority Co-Investor Transfer Notice made in accordance with this Article 51(b) shall:

- (i) identify the name, address and any relevant identifying information regarding the proposed transferee (the **Minority Co-Investor Proposed Transferee**), including any information regarding the identity of the person(s) (if any) having ultimate control of the Minority Co-Investor Proposed Transferee;
 - (ii) the total number of each class of Securities to be transferred by the Minority Co-Investor to the Minority Co-Investor Proposed Transferee (the **Transferred Securities**);
 - (iii) for each class of Transferred Securities, the consideration payable in aggregate for such class;
 - (iv) the terms and conditions pursuant to which the contemplated transfer of such Transferred Securities is to be made (including, without limitation, payment terms, any price adjustment, earn out payments, or any escrow or deferred and contingent payment provisions); and
 - (v) the warranties, indemnities and / or other specific covenants and undertakings to be granted by the Minority Co-Investor and the Minority Co-Investor Proposed Transferee (if any) in respect of the contemplated transfer.
- (c) Following the date of receipt of the Minority Co-Investor Transfer Notice by the Board (the **Transfer Notice Date**), the Board (acting with Investor Consent), shall be entitled to approve or refuse (in its absolute discretion) the transfer of the Transferred Securities to the Minority Co-Investor Proposed Transferee. The Approval shall be:
- (i) deemed to be approved upon receipt of notification in writing of such approval from the Board (acting with Investor Consent) to the relevant Minority Co-Investor (with a copy of such notification addressed to the Investors); and
 - (ii) deemed to be refused upon the earlier of:
 - (A) receipt of notification in writing of such denial from the Board to the relevant Minority Co-Investor (with a copy of such notification addressed to the Investors); or
 - (B) the date which is three months following the Transfer Notice Date, where no approval in accordance with Article 51(c)(i) has been notified by the Board to the relevant Minority Co-Investor.
- (d) The parties acknowledge and agree that the Board's decision to approve or to refuse the Approval in accordance with Article 51(c) shall be definitive and shall not need to be substantiated, and the relevant Minority Co-Investor shall not be entitled to challenge such a decision.
- (e) If the Approval is approved in accordance with Article 51(c)(i), the relevant Minority Co-Investor shall be entitled to proceed with the proposed transfer of the Transferred Securities to the Minority Co-Investor Proposed Transferee pursuant to the terms and conditions set out in the Minority Co-Investor Transfer Notice, provided that such transfer of the Transferred Securities shall take place within 20 Business Days following the date on which the Approval was granted by the Board. If the proposed transfer does not occur prior to the expiry of such time, the Approval shall lapse and the procedure provided in this Article 51 will need to be fully repeated.
- (f) If the Approval is refused, the relevant Minority Co-Investor:
- (i) shall not make the proposed transfer of the Transferred Securities (or any of them) to the Minority Co-Investor Proposed Transferee, and any such purported transfer shall be deemed null and void; and

- (ii) may elect to pursue the contemplated transfer of all (but not only some) of the Transferred Securities to another transferee to be determined by the Board (acting with Investor Consent) (a **Board Selected Transfer**) by providing written notice to the Board of its election to make the Board Selected Transfer (a **Board Selected Transfer Notice**) within 5 Business Days of the Approval being refused or deemed to be refused pursuant to Article 51(c)(ii). Failing the sending of such a Board Selected Transfer Notice within such five Business Day period, the concerned Minority Co-Investor shall be deemed to have elected not to proceed with the Board Selected Transfer.
- (g) If the relevant Minority Co-Investor elects to pursue the Board Selected Transfer in accordance with Article 51(f), the Board shall, within three months from the date of receipt of the Board Selected Transfer Notice, cause the Transferred Securities to be acquired by:
 - (i) the Investors; or
 - (ii) one or several Shareholders or third parties,
 in each case selected by the Board (acting with Investor Consent) in its absolute discretion (to the extent such persons are willing to acquire the Transferred Securities) (a **Minority Co-Investor Sale**).
- (h) Any Minority Co-Investor Sale shall be made pursuant to the following conditions:
 - (i) the Board shall send a written notice to the relevant Minority Co-Investor indicating the identity of the purchaser(s) of the Transferred Securities and the proposed date of completion of the transfer of the Transferred Securities;
 - (ii) the Transferred Securities shall be acquired at a purchase price equal to 75% of the Fair Price of such Transferred Securities as at the transfer date; and
 - (iii) on the date of completion of the transfer of the Transferred Securities, the relevant Minority Co-Investor shall deliver to the relevant purchaser(s) of the Transferred Securities, duly executed stock transfer form(s) and/or any other transfer documents reasonably determined by the Board as being necessary to give effect to such transfer, together with the related share certificate(s) and other loan note or security certificate(s) (if applicable) (or a customary indemnity for any lost certificate(s)), and the proposed purchaser(s) shall pay the corresponding purchase price for the Transferred Securities in accordance with the foregoing provisions.

52. Syndication

- (a) At any time within 12 months from the Completion Date, an A Shareholder may (by way of one or more transfers) transfer up to a total of 40% of the Shares issued to it on or around the Completion Date to one or more transferees (each a **Syndication**), provided that:
 - (i) the Investor will remain the lead Investor in the Company;
 - (ii) any such transfer must be a proportionate strip of each type or form of Share or other Securities held by, or on behalf of, such Investor;
 - (iii) any transferee under this Article must adhere to the Investment Deed (if not already a party thereto); and
 - (iv) no additional fees shall be payable by any Group Company as a result of such Syndication.

53. Compulsory transfers general

- (a) A holder of Shares must transfer all (or, where appropriate, the Relevant Proportion) of their Shares following, and as required by, the issue of a Drag Along Notice.
- (b) If any Shares have been transferred to a person pursuant to a Manager and Minority Co-Investor Permitted Transfer falling within Article 50(b) and, following a change in circumstances, a transfer to that person would no longer qualify as a Manager and Minority Co-Investor Permitted Transfer in accordance with that Article, that person must without delay notify the Company that such a change in circumstances has occurred and, if the Board with Investor Consent so resolves, that person holding such Shares shall be required to transfer such Shares back to the original transferor or to any person to whom a Manager and Minority Co-Investor Permitted Transfer could be made by the original transferor or to any other person agreed by the Board with Investor Consent on terms reasonably acceptable to the Board (with Investor Consent).
- (c) A holder of Shares must transfer their Shares in any other circumstances required by these Articles (for example, in the event of bankruptcy or certain insolvency events or if the Shareholder attempts to transfer any Shares other than in accordance with the provisions of these Articles).
- (d) If the CEO determines that a Clawback Manager has failed to meet certain performance criteria (as agreed in writing between the CEO and the relevant Clawback Manager) then in such circumstances, the Manager and Minority Co-Investor Representative may elect (with Investor Consent) in writing that the relevant Clawback Manager shall be required to transfer an amount of the C Shares and D Shares held by the relevant Clawback Manager (such amount shall be determined by the Manager and Minority Co-Investor Representative (acting with Investor Consent)) to such persons and for such price as the Manager and Minority Co-Investor Representative (acting with Investor Consent) may nominate by written notice to the relevant Clawback Manager within 60 days of the CEO determining that the relevant Clawback Manager has failed to meet certain performance criteria.
- (e) If there is a change in the Controller (or, if more than one, any of them) of a corporate Shareholder (not being a member of the Investors' Group) that is beneficially interested in Shares in the Company, or of any holding Company of such a corporate Shareholder, then that Shareholder shall without delay notify the Company that such event has occurred and, if the Board (with Investor Consent) so resolves, the holder of such Shares shall be required to transfer them to such person, and on such terms including price, as the Board (acting with Investor Consent) may direct. For the purposes of this paragraph (d) a person is the **Controller** of a corporate Shareholder if that person has the power or ability to direct the management or the policies of the corporate Shareholder, whether through the ownership of voting capital, by contract or otherwise.
- (f) If a person becomes entitled to Shares in the Company as a result of the bankruptcy of an individual Shareholder, such person shall, unless the Board (with Investor Consent) resolves otherwise, be required to transfer such Shares to such person, and on such terms including price, as the Board (acting with Investor Consent) may direct.
- (g) If a corporate Shareholder (not being a member of the Investors' Group) is beneficially interested in Shares in the Company and:
 - (i) a receiver, receiver and manager or administrative receiver has been appointed in respect of such corporate Shareholder or in respect of the whole or any part of its assets or undertaking; or
 - (ii) an administration order has been made, or petition or application has been presented for such an order or documents have been filed with the court for the appointment of an administrator in respect of such corporate Shareholder; or

- (iii) a resolution has been passed, or a petition has been presented or an order has been made for the winding-up of such corporate Shareholder or a liquidator has been appointed to such corporate Shareholder; or
- (iv) a person has been appointed, or proceedings have commenced, or an order has been obtained or any other action has been taken of a type mentioned in any of the paragraphs (i) to (iii) above in respect of such corporate Shareholder in any jurisdiction other than the United Kingdom,

such corporate Shareholder shall be required to transfer such Shares to such person, and on such terms including price, as the Board (acting with Investor Consent) may direct.

- (h) If a person at any time attempts or purports to transfer a Share otherwise than in accordance with these Articles, the holder of that Share shall, unless the Board (with Investor Consent) resolves otherwise, be required to transfer such Shares to such person, and on such terms including price, as the Board (acting with Investor Consent) may direct.
- (i) As security for the relevant Shareholder obligations under these Articles, each Shareholder hereby irrevocably appoints, jointly and severally, the Company and such person as may be nominated for the purpose by the Majority A Holders as that Shareholder's duly appointed agent to do such things in that Shareholder's name (including the completion, execution and delivery of documents) as may be required or reasonably considered by the agent to be desirable to effect any transfer of Shares held by that holder required:
 - (i) pursuant to the compulsory transfer provisions in this Article;
 - (ii) following the issue to such Shareholder of a Drag Along Notice;
 - (iii) pursuant to the Strip Leaver provisions in Article 56 or Sweet Leaver provisions in Article 57; or
 - (iv) to fulfil any of that holder's obligations under these Articles.

54. Tag along rights

- (a) Other than:
 - (i) in relation to any transfer that is a permitted transfer pursuant to Article 50;
 - (ii) where a Drag Along Notice has been served; or
 - (iii) where such transfer is made in connection with a Listing,

if the Investors propose to transfer (whether by one transfer or a series of related transfers) any of their A Shares to a third party purchaser or group of Connected Persons or persons acting in concert (other than to any other member of its Investors' Group, but provided this provision shall apply without such exclusion to any transfer to a Continuation Fund) (the **Proposed Tag Along Transferee**) that would after such intended transfer(s):

- (i) not result in the Proposed Tag Along Transferee(s) holding more than 50% of the Ordinary Shares in issue (a **Proposed Minority Transfer**), an offer (a **Strip Tag Along Offer**) must have been made to all holders of Participating Tag Shares to acquire the same proportion of each class of their Participating Tag Shares as the proportion of the A Shares the Investors are proposing to sell bears to the total number of A Shares in issue prior to the transfer;

- (ii) result in the Proposed Tag Along Transferee(s) holding more than 50% of the Ordinary Shares in issue (a **Proposed Majority Transfer**), an offer (a **Full Tag Along Offer**, and together with a Strip Tag Along Offer, a **Tag Along Offer**) must have been made to all the other holders of Participating Tag Shares to acquire all the Participating Tag Shares held by them.
- (b) Any Strip Tag Along Offer or Full Tag Along Offer (as applicable) made in accordance with paragraph (a) above shall:
 - (i) be on terms no less favourable than those applying to the transfer by the Investors; and
 - (ii) be expressed to be open for acceptance for at least 15 Business Days.
- (c) An offer shall be a Strip Tag Along Offer or Full Tag Along Offer (as applicable) and shall be deemed to be on no less favourable terms, notwithstanding that:
 - (i) the amount of the consideration to be received by each holder of Shares shall be determined by reference to Article 43 (in relation to the relevant class or classes of Shares which are proposed to be transferred pursuant to the Strip Tag Along Offer or Full Tag Along Offer (as applicable));
 - (ii) the consideration set out in the Strip Tag Along Offer or Full Tag Along Offer (as applicable) is solely cash consideration, notwithstanding that particular other holders of Shares are receiving an element of non-cash consideration in the form of shares of the relevant offeror or an associate of the offeror;
 - (iii) the consideration set out in the Strip Tag Along Offer or Full Tag Along Offer (as applicable) includes a loan note alternative which is also to be received by the Investors; and/or
 - (iv) the Strip Tag Along Offer or Full Tag Along Offer (as applicable) does not contain a provision providing for the payment or reimbursement by the offeror, the Company or some other person of fees, out-of-pocket costs and expenses incurred by some or all of the holders of the Participating Tag Shares in connection with the transfer of the relevant Shares held by them, notwithstanding that certain other holders of Shares benefit from such a provision.

55. **Drag Along Rights**

(a) **Exit on a Sale**

If the holders of more than 50% of the A Shares (the **Drag Along Sellers**) propose to transfer (whether by one transfer or a series of related transfers) a majority of their A Shares by way of a *bona fide* sale on arm's length terms to any third party person or group of Connected Persons or persons acting in concert (other than to a member of an Investors' Group or to a Continuation Fund) (the **Transferee**), all the other holders of Shares (including any persons who become holders of Shares upon exercise of any rights of subscription or conversion) (the **Compulsory Sellers**) shall, if so required by the Drag Along Sellers by notice in writing given to the Compulsory Sellers at any time before or at the same time as the proposed transfer (a **Drag Along Notice**), transfer (on such date, being at the same time as the date of the transfer by the Drag Along Sellers of their Shares, or otherwise) all of their Ordinary Shares, Priority Shares and all of their other Shares to the Transferee on terms no less favourable than those applying to the transfer by any of the Drag Along Sellers. The Compulsory Sellers shall not be required to give any warranties or indemnities in favour of the Transferee (other than customary title and capacity warranties) in respect of their C Shares and D Shares (if any).

(b) **Exit on a Listing**

If, in connection with a Listing, the Drag Along Sellers propose to transfer a proportion of their Shares (the **Relevant Proportion**), the Compulsory Sellers shall, if so required by the Drag Along Sellers by a Drag Along Notice, transfer (on such date, being at the same time as the date of the transfer by the Drag Along Sellers of their Shares, as may be specified by the Drag Along Sellers in the Drag Along Notice or otherwise) the Relevant Proportion of their Ordinary Shares, Priority Shares and/or other Shares in connection with the Listing as the Drag Along Sellers may direct on terms no less favourable than those applying to the transfer by any of the Drag Along Sellers.

(c) **No less favourable terms**

A transfer by the Compulsory Sellers shall be on terms no less favourable than those applying to a transfer by any of the Drag Along Sellers in paragraph (a) or (b) above notwithstanding that:

- (i) the amount of consideration to be received by each holder of Shares shall be determined by reference to Article 43;
- (ii) the consideration for the transfer by the Compulsory Sellers includes a loan note alternative which is also to be received by the Drag Along Sellers;
- (iii) the consideration for the transfer by the Compulsory Sellers is solely cash consideration, notwithstanding that particular other holders of Securities are receiving an element of non-cash consideration in the form of shares of the relevant offeror or an associate of the offeror; and/or
- (iv) the terms of the transfer by the Compulsory Sellers do not contain a provision providing for the payment or reimbursement by the Transferee, the Company or some other person of the fees, out-of-pocket costs and expenses incurred by any of the Compulsory Sellers in connection with the transfer of the Securities held by them, notwithstanding that certain other holders of Securities benefit from such a provision.

56. Strip Leaver Provisions

- (a) For the purposes of this Article 56:

Bad Strip Leaver means a Strip Leaver who is not a Minority Co-Investor Strip Leaver (and who has not been designated as a Good Strip Leaver by the Board (or any committee to which the Board delegates responsibility for such purposes) and who is not a Very Bad Strip Leaver) whose cessation of Employment occurs as a result of:

- (i) resignation at any time prior to the fifth anniversary of the Completion Date (in circumstances that are not determined by an appropriate court or tribunal to amount to constructive dismissal); or
- (ii) dismissal for reasons of wilful misconduct, gross negligence or any reasons justifying, or which would justify, summary dismissal under such Strip Leaver's service agreement or terms of appointment.

Good Strip Leaver means:

a Strip Leaver who is not a Minority Co-Investor Strip Leaver and who:

- (i) becomes a Strip Leaver as a result of:
 - (A) retirement at the statutory retirement age applicable to such Strip Leaver in the country in which the Strip Leaver is Employed;

- (B) death;
 - (C) having suffered a physical or mental deterioration which is sufficiently serious to permanently prevent such Strip Leaver from continuing Employment, as determined by two independent medical physicians reasonably acceptable to the Investors (engaged at the Strip Leaver's sole expense);
 - (D) becoming a full time carer for a Family Member who has suffered a physical or mental deterioration which is sufficiently serious to permanently prevent such Strip Leaver from continuing Employment, as determined by two independent medical physicians reasonably acceptable to the Investors (engaged at the Strip Leaver's sole expense); or
 - (E) wrongful dismissal;
- (ii) is designated a Good Strip Leaver by the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent);
 - (iii) becomes a Strip Leaver through the Group's "glidepath programme" as in effect prior to the Completion Date (provided that the Strip Leaver has been designated as a Good Strip Leaver by the Board (or any committee to which the Board delegates responsibility for such purposes), acting with Investor Consent); or
 - (iv) is a Strip Leaver who is neither a Bad Strip Leaver nor a Very Bad Strip Leaver;

Mandatory Strip Transferor means, in relation to a Strip Leaver, each person holding Strip Leaver's Securities (which may, for the avoidance of doubt, include any Employee Trust);

Minority Co-Investor Strip Leaver means any Strip Leaver that is a Minority Co-Investor;

Strip Leaver means any member of the Company who at the Completion Date, or who later becomes, an Employee of a Group Company and any person on whose behalf any Employee Trust holds Shares or other Securities and who is at the Completion Date, or who later becomes, an Employee of a Group Company shall become a Strip Leaver immediately upon the earliest of:

- (i) giving or receiving notice that the relevant person will cease to be, or the relevant person otherwise ceasing to be, an Employee of a Group Company (in each case other than as a result of the Group disposing of all or substantially all of its assets); or
- (ii) becoming entitled by reason of illness or disablement giving rise to permanent incapacity to receive benefits under the permanent health insurance scheme of the Company or any member of the Group;

Strip Leaver's Loan Notes Face Value means the principal amount of any Strip Leaver's Loan Notes plus any accrued but unpaid interest thereon;

Strip Leaver Period means 12 months from the Strip Termination Date;

Strip Leaver's Securities means the Strip Leaver's Shares, Loan Notes and any other class of priority shares or other preferred return instruments in the capital of any Group Company issued to such Strip Leaver in accordance with the Investment Deed (including without limitation Loan Notes (if applicable) but, in respect of Managers only, excluding any B Shares) held at the Strip Termination

Date by the Strip Leaver and any of the Strip Leaver's Permitted Transferees or on the Strip Leaver's behalf by an Employee Trust or in which the Strip Leaver or any of them has a beneficial interest;

Strip Leaver's Shares means at the Strip Termination Date:

- (i) Priority Shares and, in respect of Minority Co-Investors only, B Shares, held by the Strip Leaver and any of the Strip Leaver's Permitted Transferees or on the Strip Leaver's behalf by an Employee Trust or in which the Strip Leaver or any of them has a beneficial interest;
- (ii) Priority Shares and, in respect of Minority Co-Investors only, B Shares, which have been transferred by the Strip Leaver or on the Strip Leaver's behalf by an Employee Trust to any of the Strip Leaver's Permitted Transferees (whether or not still held by that Permitted Transferee); and
- (iii) Shares which have been granted in respect of the Shares referred to in paragraphs (i) and (ii) above by way of rights, bonus or otherwise;

Strip Performance Condition means the condition that the Strip Leaver (other than any Minority Co-Investor Strip Leaver) shall not, either directly or indirectly:

- (i) while Employed by any Group Company and during the Restricted Period, make any disparaging comments or statements about:
 - (a) the business of the Group;
 - (b) any member of the Group; or
 - (c) any of the Investors (or any member of any Investors' Group),

to any person (including, without limitation, the media and customers and suppliers of the Group) or make any comments and statements that such Strip Leaver (other than any Minority Co-Investor Strip Leaver) knows is likely to be harmful to the goodwill of any Group Company, provided that nothing herein shall prevent any such Strip Leaver from:

- (a) making any *bona fide* disclosure required or protected under applicable law (including under any whistleblowing or similar law or under any reporting procedures of any applicable regulatory or similar body);
- (b) communicating in an open and candid way with professional advisers engaged by any Group Company, to the extent that such communications are in respect of the matters on which such professional advisers have been retained to advise such Group Company;
- (c) taking his or her own independent legal advice, on a confidential basis;
- (d) making any mandatory disclosure in any legal proceeding (including any arbitral or tribunal proceedings);
- (e) responding truthfully in any internal process of the Group (including any complaint, disciplinary or grievance or whistleblowing processes or confidential internal management operating and reporting processes); or
- (f) taking part in (or making any statement in any materials prepared for) any meeting of the board of any Group Company or any committee thereof;

- (ii) at any time while Employed by any Group Company and during the Restricted Period be concerned in any business operating in the Restricted Territories which is competitive with any part of the business or businesses carried on by any Group Company at the Relevant Date or during the period of 12 months prior to the Relevant Date;
- (iii) at any time while Employed by any Group Company and during the Restricted Period:
 - (A) solicit or attempt to solicit from his or her employment with any Group Company any person who is at the Relevant Date or was during the period of 12 months prior to the Relevant Date a Group Employee of any Group Company with a title of 'Manager', or any equivalent or higher level of seniority from time to time; or
 - (B) employ or attempt to employ any person who is at the Relevant Date or during the period of 12 months prior to the Relevant Date a Group Employee with a title of 'Manager', or any equivalent or higher level of seniority from time to time,

provided that this provision shall not apply to the Employment or attempted Employment of any such Group Employee who makes an unsolicited response to a general recruitment advertisement or campaign;

- (iv) at any time while Employed by any Group Company and during the Restricted Period induce or attempt to induce any person who is at the Relevant Date or was during the period of 12 months prior to the Relevant Date a supplier of goods or services to a Group Company (including, without limitation, any contractor of a Group Company), to cease to supply, or to restrict or vary the terms of supply to, a Group Company;
- (v) at any time while Employed by any Group Company and during the Restricted Period solicit or attempt to solicit the custom of, or deal or endeavour to deal with, any person who is at the Relevant Date or who:
 - (A) at any time during the period of two years prior to the Relevant Date, was a customer of any Group Company; or
 - (B) at any time during the period of 12 months prior to the Relevant Date, had any dealings, negotiations or discussions with any Group Company with a view to entering into a contract with any Group Company (provided that such Strip Leaver was involved in those dealings, negotiations or discussions with that person or otherwise knew or ought reasonably to have known that the relevant Group Company had engaged in such dealings, negotiations or discussions),

in each case so as to compete with, or harm the goodwill of, the Company or any other Group Company; or

- (vi) at any time use or (insofar as the Strip Leaver can do so) allow to be used (except by the Group Companies) any trade name used by a Group Company prior to the Relevant Date or any other name intended or likely to be confused with such a trade name;

Strip Termination Date means the date on which the relevant person becomes a Strip Leaver; and

Very Bad Strip Leaver means a Strip Leaver who is not a Minority Co-Investor Strip Leaver and:

- (i) who fails to satisfy the Strip Performance Condition at, or at any time after, becoming a Strip Leaver; or

- (ii) whose cessation of Employment occurs as a result of dismissal for reasons of fraud or conviction of a criminal offence punishable by imprisonment (excluding any offence under road traffic legislation in respect of which a custodial sentence is not imposed); or
 - (iii) a Strip Leaver who has been treated as a Good Strip Leaver or a Bad Strip Leaver but who is redesignated as a Very Bad Strip Leaver in accordance with the provisions of paragraph (f) below.
- (b) Upon a person becoming a Strip Leaver, if the Board (or any committee to which the Board delegates responsibility for such purposes) (acting with Investor Consent) within the Strip Leaver Period so resolves, each Mandatory Strip Transferor shall transfer the Strip Leaver's Securities held by the Mandatory Strip Transferor (or such of them as the Board (or any committee to which the Board delegates responsibility) (with Investor Consent) may resolve) to such persons as the Board (or any committee to which the Board delegates responsibility for such purposes) may nominate by written notice to the Strip Leaver within 60 days of such resolution.
- (c) The price for the Strip Leaver's Securities applying to any transfer under paragraph (b) above (the **Strip Leaver Price**) shall, unless the transferor and the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) agree some other price, be the Priority Share Price, (if applicable) the B Share Price and (if applicable) the Loan Note Price, where:
- (i) if the Strip Leaver is a Minority Co-Investor Strip Leaver, the **B Share Price** shall be equal to 75% of the Fair Price in respect of such Strip Leaver's B Shares;
 - (ii) the **Priority Share Price** shall be determined as follows:
 - (A) if the Strip Leaver is a Good Strip Leaver or a Minority Co-Investor Strip Leaver, the Priority Share Price shall be the Priority Subscription Amount plus the Priority Amount in respect of such Strip Leaver's Priority Shares from the date of issue of such Priority Shares;
 - (B) if the Strip Leaver is a Bad Strip Leaver, the Priority Share Price shall be the Priority Subscription Amount plus the Priority Amount in respect of such Strip Leaver's Priority Shares, provided that the Priority Amount shall be recalculated (including in respect of any compounding interest) as if the Priority Amount on each such Priority Share had been accruing at a rate of 5% per annum (rather than 12% per annum) from the date of issue of such Priority Shares (the **Adjusted Priority Amount**); and
 - (C) if the Strip Leaver is a Very Bad Strip Leaver, the Priority Share Price shall be the Priority Subscription Amount in respect of such Strip Leaver's Priority Shares (the **Very Bad Strip Leaver Priority Price**);
 - (iii) the **Loan Note Price** shall be determined as follows:
 - (A) if the Strip Leaver is a Good Strip Leaver or a Minority Co-Investor Strip Leaver, the Loan Note Price shall be the Strip Leaver's Loan Notes Face Value from the date of issue of such Loan Notes;
 - (B) if the Strip Leaver is a Bad Strip Leaver, the Loan Note Price shall be that Strip Leaver's Loan Notes Face Value, provided that the interest thereon shall be recalculated (including in respect of any compounding interest) as if the interest on such Loan Notes had been accruing at a rate of 5% per annum (rather than 12% per annum) from the date of issue of such Loan Notes (the **Adjusted Loan Note Coupon**); and

- (C) if the Strip Leaver is a Very Bad Strip Leaver, the Loan Note Price shall be the principal amount only in respect of such Loan Notes (and nil interest) (the **Very Bad Strip Leaver Loan Note Price**, and together with the Very Bad Strip Leaver Priority Price, the **Very Bad Strip Leaver Price**);
- (iv) the relevant Priority Share Price, B Share Price and Loan Note Price (as applicable) shall be calculated as at the date of the transfer of the Strip Leaver's Securities; and
- (v) the relevant Strip Leaver Price shall be allocated among the Mandatory Strip Transferors proportionately relative to the corresponding Strip Leaver's Securities held by them.
- (d) The relevant Strip Leaver Price shall be paid in cash on the date on which the Strip Leaver transfers their relevant Strip Leaver's Securities pursuant to this Article 56.
- (e) The parties acknowledge that:
 - (i) any Strip Leaver's Securities transferred to an A Shareholder, B Shareholder, Priority Shareholder or member of the Investors' Group in accordance with these Articles may be subsequently transferred, provided such further transfer is permitted pursuant to these Articles; and
 - (ii) if so determined by the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent), a person to whom Strip Leaver's Securities are transferred in accordance with these Articles may be required to pay a higher price for those Strip Leaver's Securities than the relevant Strip Leaver Price, in which event the difference between such price and the relevant Strip Leaver Price shall be paid by the transferee of the Strip Leaver's Securities to the Company.
- (f) If the Investors or the Board (or any committee to which the Board delegates responsibility for such purposes) become aware of facts, matters or circumstances in respect of a Strip Leaver (other than any Minority Co-Investor Strip Leaver) who was previously treated as a Good Strip Leaver or a Bad Strip Leaver which would, had they been known to the Investors or any Group Company and applied at relevant time, enabled that person to be treated as a Very Bad Strip Leaver, then the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) may resolve that such Strip Leaver be re-designated as a Very Bad Strip Leaver. If the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) so resolves, the relevant Strip Leaver Price determined in accordance with paragraph (c) above (the **Original Strip Price**) shall be adjusted to reduce that Strip Leaver Price to the relevant Very Bad Strip Leaver Price, calculated as at the date of transfer of the Strip Leaver's Securities (unless the Strip Leaver and the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) agree some other price) (the **Adjusted Strip Price**) and if the Adjusted Strip Price is lower than the Original Strip Price, the Strip Leaver shall repay the difference to the Company or to Midco 1 (as applicable).
- (g) If at any time on or after a Strip Leaver's Strip Termination Date such Strip Leaver retains any Strip Leaver's Securities (the **Retained Securities**), unless otherwise determined by the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent):
 - (i) if the Strip Leaver is a Good Strip Leaver or a Minority Co-Investor Strip Leaver, the Priority Amount or interest (as applicable) in respect of such Strip Leaver's Retained Securities shall continue to accrue at the same rate as immediately prior to such Strip Leaver's Strip Termination Date;
 - (ii) if the Strip Leaver is a Bad Strip Leaver, the Priority Amount or interest (as applicable) in respect of such Strip Leaver's Retained Securities shall, with automatic effect from the Strip

Leaver's Strip Termination Date, be reduced to the Adjusted Priority Amount or Adjusted Loan Note Coupon (as applicable) and any Priority Amount or interest thereon shall be recalculated (including in respect of any compounding amount or interest) as if the Priority Amount or interest (as applicable) on such Strip Leaver's Retained Securities had been accruing at the Adjusted Priority Amount or Adjusted Loan Note Coupon (as applicable) from the date of issue of such Strip Leaver's Retained Securities;

- (iii) if the Strip Leaver is a Very Bad Strip Leaver or becomes one by operation of Article 56(f), the Priority Amount or interest (as applicable) in respect of such Strip Leaver's Retained Securities shall, with automatic effect from the Strip Leaver's Strip Termination Date, cease to accrue (and shall be deemed to have ceased to accrue) any Priority Amount or interest (as applicable), and any Priority Amount or interest accrued from the date of issue of such Retained Securities shall be deemed waived, written off, deferred or otherwise forfeited as directed by the Investors (and the parties shall (if so directed by the Investors) take any necessary steps to effect the same); and
 - (iv) to the extent that any accrued interest or Priority Amount (as applicable) in respect of the Retained Securities had previously been paid in cash to the Strip Leaver, such amounts shall become automatically repayable by the Strip Leaver to the Company or to Midco 1 (as applicable).
- (h) Where the Board (or any committee to which the Board may delegate such responsibility), acting with Investor Consent, notifies a Minority Co-Investor Strip Leaver of its determination of the B Share Price applicable to a Minority Co-Investor Strip Leaver's Securities in accordance with Article 56(c) in writing (**Notice of Strip Price**), and the Minority Co-Investor Strip Leaver disputes such Notice of Strip Price by serving written notice on the Board within 10 Business Days following the service of that Notice of Strip Price, the Fair Price in respect of the relevant Minority Co-Investor Strip Leaver's B Shares (for the purpose of determining their corresponding B Share Price) shall be determined by the Independent Expert as follows:
- (i) the Board (or any committee to which the Board may delegate such responsibility), acting with Investor Consent, shall promptly instruct the Independent Expert to determine the Fair Price on the basis which, in their opinion, represents a fair price for such Minority Co-Investor Strip Leaver's B Shares at the Strip Termination Date as between a willing seller and a willing buyer and on a going concern basis (provided that this is the case) and, in making such determination, the Independent Expert shall take into account:
 - (A) the rights and restrictions attached to such Shares in respect of income and capital;
 - (B) the fact that the Shares are not quoted on any regulated investment exchange;
 - (C) the group turnover, future and actual cash generation, current and future profitability and growth prospects of the Group;
 - (D) any unencumbered and freely transferable cash balances and marketable securities owned by the Company and any other Group Company;
 - (E) all borrowings, guarantees and any other actual or contingent liabilities of the Company and any other Group Company;
 - (F) the value and existence of any minority interests in any Group Company; and
 - (G) the market value of other companies of a similar size operating in similar markets to the Company (taking into account all other factors in this Article);

but shall take no account of:

- (H) whether the Minority Co-Investor Strip Leaver's B Shares comprise a majority or minority interest in the Company; or
- (I) the fact that the transferability of the Minority Co-Investor Strip Leaver's B Shares is restricted in accordance with the Investment Deed and these Articles;
- (ii) the Independent Expert shall certify the Fair Price for the B Shares as soon as possible after being instructed by the Board (or any committee to which the Board may delegate such responsibility) and, in so certifying, the Independent Expert shall be deemed to be acting as expert and not as arbiter and the Arbitration Act 1996 shall not apply;
- (iii) the certificate of the Independent Expert shall, in the absence of manifest error, be final and binding; and
- (iv) the Board (or any committee to which the Board may delegate such responsibility) shall procure that any certificate required hereunder is obtained with due expedition and the cost of obtaining such certificate shall be borne by the Company unless (i) such an arrangement would not be permitted by law or (ii) where the Fair Price as determined by the Independent Expert is less than 110% of the price (if any) which the Board (or any committee to which the Board delegates responsibility) had previously notified to the Strip Leaver pursuant to the Notice of Strip Price as being in its opinion the Fair Price for the B Shares (for the purpose of determining their corresponding B Share Price) (or, if the price which the Board (or any committee to which the Board may delegate such responsibility) had previously notified pursuant to the Notice of Strip Price was zero, the Fair Price as determined by the Independent Expert is less than 10% of the price at which the relevant B Share was issued, being the aggregate of the amount paid up or credited as paid up in respect of the nominal value thereof and any share premium thereon of such B Share), in which event the cost shall be borne by the Minority Co-Investor Strip Leaver and deducted from the consideration payable to such Minority Co-Investor Strip Leaver for the B Shares being transferred pursuant to this Article.

57. Sweet Leaver Provisions

- (a) For the purposes of this Article 57:

Bad Sweet Leaver means a Sweet Leaver who is not a Minority Co-Investor Sweet Leaver (and who has not been designated as a Good Sweet Leaver or an Intermediate Sweet Leaver by the Board (or any committee to which the Board delegates responsibility for such purposes), acting with Investor Consent) whose cessation of Employment occurs as a result of:

- (i) dismissal for reasons justifying, or which would justify, summary dismissal under such Sweet Leaver's service agreement or terms of appointment;
- (ii) resignation at any time prior to the fifth anniversary of the Completion Date (in circumstances that are not determined by an appropriate court or tribunal to amount to constructive dismissal);
- (iii) who fails to satisfy the Sweet Performance Condition at, or at any time after, becoming a Sweet Leaver; or
- (iv) dismissal for reasons of fraud or conviction of a criminal offence punishable by imprisonment (excluding any offence under road traffic legislation in respect of which a custodial sentence is not imposed);

Good Sweet Leaver means a Sweet Leaver who is not a Minority Co-Investor Sweet Leaver and who:

- (i) becomes a Sweet Leaver as a result of:
 - (A) retirement at the statutory retirement age applicable to such Sweet Leaver in the country in which the Sweet Leaver is Employed;
 - (B) death;
 - (C) having suffered a physical or mental deterioration which is sufficiently serious to permanently prevent such Sweet Leaver from continuing Employment, as determined by two independent medical physicians reasonably acceptable to the Investors (engaged at the Sweet Leaver's sole expense);
 - (D) becoming a full time carer for a Family Member who has suffered a physical or mental deterioration which is sufficiently serious to permanently prevent such Sweet Leaver from continuing Employment, as determined by two independent medical physicians reasonably acceptable to the Investors (engaged at the Sweet Leaver's sole expense); or
 - (E) wrongful dismissal;
 - (F) becomes a Sweet Leaver through the Group's "glidepath programme" (provided that the Sweet Leaver has been designated as a Good Sweet Leaver by the Board (or any committee to which the Board delegates responsibility for such purposes)); or
 - (G) is designated a Good Sweet Leaver by the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent);

Intermediate Sweet Leaver means a Sweet Leaver who is not a Minority Co-Investor Sweet Leaver and otherwise is neither a Good Sweet Leaver nor a Bad Sweet Leaver;

Mandatory Sweet Transferor means, in relation to a Sweet Leaver, each person holding Sweet Leaver's Shares (which may, for the avoidance of doubt, include any Employee Trust);

Minority Co-Investor Sweet Leaver means any Sweet Leaver that is a Minority Co-Investor;

Relevant Percentage shall be 0% at the date the Sweet Leaver first acquired or subscribed for Sweet Leaver's Shares (or at the date the Employee Trust first acquired or subscribed for Sweet Leaver's Shares on the Sweet Leaver's behalf) and:

- (i) shall increase from 0% to 16% on the first anniversary of such date;
- (ii) between the first anniversary and the fifth anniversary of such date, shall increase (on a fully completed monthly step-up basis) from 16% to 80%; and
- (iii) after the fifth anniversary of such date, there will be no further increase beyond 80% until an Exit, at which point the Relevant Percentage shall increase to 100%;

Sweet Leaver means any member of the Company who is at the Sweet Issuance Date, or who later becomes, an Employee of a Group Company and any person on whose behalf any Employee Trust holds Shares or other Securities and who is at the Sweet Issuance Date, or who later becomes, an Employee of a Group Company shall become a Sweet Leaver immediately upon the earliest of:

- (i) giving or receiving notice that the relevant person will cease to be, or the relevant person otherwise ceasing to be, an Employee of a Group Company (in each case other than as a result of the Group disposing of all or substantially all of its assets); or
- (ii) becoming entitled by reason of illness or disablement giving rise to permanent incapacity to receive benefits under the permanent health insurance scheme of the Company or any member of the Group;

Sweet Leaver Period means:

- (i) in respect of a Sweet Leaver who is not a Minority Co-Investor, 12 months from the Sweet Termination Date; and
- (ii) in respect of a Sweet Leaver who is a Minority Co-Investor, 12 months from the later of (as the case may be) (i) any applicable Minority Co-Investor Buyback Date and (ii) the Sweet Termination Date;

Sweet Leaver's Shares means at the Sweet Termination Date or the applicable Minority Co-Investor Buyback Date (as applicable):

- (i) C Shares and D Shares held by the Sweet Leaver and any of the Sweet Leaver's Permitted Transferees or on the Sweet Leaver's behalf by an Employee Trust or in which the Sweet Leaver or any of them has a beneficial interest;
- (ii) C Shares and D Shares which have been transferred by the Sweet Leaver or on the Sweet Leaver's behalf by an Employee Trust to any of the Sweet Leaver's Permitted Transferees (whether or not still held by that Permitted Transferee); and
- (iii) Shares which have been granted in respect of the Shares referred to in paragraphs (a) and (b) above by way of rights, bonus or otherwise;

Sweet Performance Condition means the condition that the Sweet Leaver (other than any Minority Co-Investor Sweet Leaver) shall not, either directly or indirectly:

- (i) while Employed by any Group Company and during the Restricted Period, make any disparaging comments or statements about:
 - (a) the business of the Group;
 - (b) any member of the Group; or
 - (c) any of the Investors (or any member of any Investors' Group),

to any person (including, without limitation, the media and customers and suppliers of the Group) or make any comments and statements that such Sweet Leaver (other than any Minority Co-Investor Sweet Leaver) knows is likely to be harmful to the goodwill of any Group Company, provided that nothing herein shall prevent any such Sweet Leaver from:

- (d) making any *bona fide* disclosure required or protected under applicable law (including under any whistleblowing or similar law or under any reporting procedures of any applicable regulatory or similar body);
- (e) communicating in an open and candid way with professional advisers engaged by any Group Company, to the extent that such communications are in respect of the matters

on which such professional advisers have been retained to advise such Group Company;

- (f) taking his or her own independent legal advice, on a confidential basis;
 - (g) making any mandatory disclosure in any legal proceeding (including any arbitral or tribunal proceedings);
 - (h) responding truthfully in any internal process of the Group (including any complaint, disciplinary or grievance or whistleblowing processes or confidential internal management operating and reporting processes); or
 - (i) taking part in (or making any statement in any materials prepared for) any meeting of the board of any Group Company or any committee thereof;
- (ii) at any time while Employed by any Group Company and during the Restricted Period be concerned in any business operating in the Restricted Territories which is competitive with any part of the business or businesses carried on by any Group Company at the Relevant Date or during the period of 12 months prior to the Relevant Date;
- (iii) at any time while Employed by any Group Company and during the Restricted Period:
- (A) solicit or attempt to solicit from his or her employment with any Group Company any person who is at the Relevant Date or was during the period of 12 months prior to the Relevant Date a Group Employee of any Group Company with a title of 'Manager', or any equivalent or higher level of seniority from time to time; or
 - (B) employ or attempt to employ any person who is at the Relevant Date or during the period of 12 months prior to the Relevant Date a Group Employee with a title of 'Manager', or any equivalent or higher level of seniority from time to time,

provided that this provision shall not apply to the Employment or attempted Employment of any such Group Employee who makes an unsolicited response to a general recruitment advertisement or campaign;

- (iv) at any time while Employed by any Group Company and during the Restricted Period induce or attempt to induce any person who is at the Relevant Date or was during the period of 12 months prior to the Relevant Date a supplier of goods or services to a Group Company (including, without limitation, any contractor of a Group Company), to cease to supply, or to restrict or vary the terms of supply to, a Group Company;
- (v) at any time while Employed by any Group Company and during the Restricted Period solicit or attempt to solicit the custom of, or deal or endeavour to deal with, any person who is at the Relevant Date or who:
 - (A) at any time during the period of two years prior to the Relevant Date, was a customer of any Group Company; or
 - (B) at any time during the period of 12 months prior to the Relevant Date, had any dealings, negotiations or discussions with any Group Company with a view to entering into a contract with any Group Company (provided that such Sweet Leaver was involved in those dealings, negotiations or discussions with that person or otherwise knew or ought reasonably to have known that the relevant Group Company had engaged in such dealings, negotiations or discussions),

in each case so as to compete with, or harm the goodwill of, the Company or any other Group Company; or

- (vi) at any time use or (insofar as the Sweet Leaver can do so) allow to be used (except by the Group Companies) any trade name used by a Group Company prior to the Relevant Date or any other name intended or likely to be confused with such a trade name;

Sweet Termination Date means the date on which the relevant person becomes a Sweet Leaver.

- (b) Upon a person becoming a Sweet Leaver, unless the Board (or any committee to which the Board delegates responsibility for such purposes) (acting with Investor Consent) resolves otherwise, the relevant C1 Shares and D1 Shares held by a Sweet Leaver (who is not a Minority Co-Investor Sweet Leaver) shall not entitle the holder thereof:
 - (i) to attend or vote, either personally or by proxy, at any general meeting or class meeting of the Company, or vote for the purposes of any written resolution of the Company; or
 - (ii) to any information rights beyond those required by law.
- (c) Upon a person becoming a Sweet Leaver, if the Board (or any committee to which the Board delegates responsibility for such purposes) (acting with Investor Consent) within the Sweet Leaver Period so resolves, each Mandatory Sweet Transferor shall transfer the Sweet Leaver's Shares held by the Mandatory Sweet Transferor (or such of them as the Board (or any committee to which the Board delegates responsibility) (with Investor Consent) may resolve) to such persons, being:
 - (i) Employees or prospective Employees of any Group Company or persons who undertake to transfer those Sweet Leaver's Shares to Employees of any Group Company;
 - (ii) the Employee Trust (other than on behalf of any Sweet Leaver);
 - (iii) any A Shareholder or member of the Investors' Group for onward transfer to any person falling within (i) or (ii) above; and/or
 - (iv) the Company (subject to compliance with the Companies Act 2006),

as the Board (or any committee to which the Board delegates responsibility for such purposes) may nominate by written notice to the Sweet Leaver within 60 days of such resolution.

- (d) The price for the Sweet Leaver's Shares applying to any transfer under Article 57(c) (the **Sweet Leaver Price**) shall, unless the transferor and the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) agree some other price, be the C1 Share Price, C2 Share Price, D1 Share Price and the D2 Share Price (as applicable), where:
 - (i) the **C1 Share Price** and the **D1 Share Price** shall be determined as follows:
 - (A) if the Sweet Leaver is a Good Sweet Leaver, the C1 Share Price and the D1 Share Price (as applicable) shall be the Fair Price;
 - (B) if the Sweet Leaver is a Bad Sweet Leaver, the C1 Share Price and the D1 Share Price (as applicable) shall be the lower of the Subscription Price and the Fair Price (unless the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) resolves that the C1 Share Price and/or the D1 Share Price (as applicable) shall be the Subscription Price (the **Bad Sweet Leaver Price**); or

- (C) if the Sweet Leaver is an Intermediate Sweet Leaver, the price for the Relevant Percentage of the C1 Shares and the D1 Shares (as applicable) (or Shares which have been granted in respect of C1 Shares and D1 Shares (as applicable)) to be transferred shall be the Fair Price and the price for the remainder of such Shares shall be the lower of the Subscription Price and the Fair Price;
 - (ii) if the Sweet Leaver is a Minority Co-Investor Sweet Leaver, the **C2 Share Price** and the **D2 Share Price** shall be equal to 75% of the Fair Price in respect of such Sweet Leaver's C2 Shares or D2 Shares (as applicable);
 - (iii) the relevant C1 Share Price, C2 Share Price, D1 Share Price and D2 Share Price (as applicable) shall be calculated as at the date the Sweet Leaver becomes a Sweet Leaver (or the date on which a Minority Co-Investor Sweet Leaver's Sweet Leaver's Shares are transferred in accordance with this Article 57 following the Minority Co-Investor Buyback Date (if later)); and
 - (iv) the relevant Sweet Leaver Price shall be allocated among the Mandatory Sweet Transferors proportionately relative to the corresponding Sweet Leaver's Shares held by them.
- (e) The relevant Sweet Leaver Price shall be paid in cash on the date on which the Sweet Leaver transfers their relevant Sweet Leaver's Shares pursuant to this Article 57.
- (f) The parties acknowledge that:
- (i) any Sweet Leaver's Shares transferred to an A Shareholder, B Shareholder, C Shareholder or member of the Investors' Group in accordance with these Articles may be subsequently transferred, provided such further transfer is permitted pursuant to these Articles; and
 - (ii) if so determined by the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent), a person to whom Sweet Leaver's Shares are transferred in accordance with these Articles may be required to pay a higher price for those Sweet Leaver's Shares than the relevant Sweet Leaver Price, in which event the difference between such price and the relevant Sweet Leaver Price shall be paid by the transferee of the Sweet Leaver's Shares to the Company.
- (g) If the Investors or the Board (or any committee to which the Board delegates responsibility for such purposes) become aware of facts, matters or circumstances in respect of a Sweet Leaver (other than any Minority Co-Investor Sweet Leaver) who was previously treated as a Good Sweet Leaver or an Intermediate Sweet Leaver which would, had they been known to the Investors or any Group Company and applied at the relevant time, enabled that person to be treated as a Bad Sweet Leaver, then the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) may resolve that such Sweet Leaver be re-designated as a Bad Sweet Leaver. If the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) so resolves, the relevant Sweet Leaver Price determined in accordance with Article 57(d) (the **Original Sweet Price**) shall be adjusted to reduce that Sweet Leaver Price to the relevant Bad Sweet Leaver Price, calculated as at the date of transfer of the Sweet Leaver's Shares (unless the Sweet Leaver and the Board (or any committee to which the Board delegates responsibility for such purposes) (with Investor Consent) agree some other price) (the **Adjusted Sweet Price**) and if the Adjusted Sweet Price is lower than the Original Sweet Price, the Sweet Leaver shall repay the difference to the Company.
- (h) Where the Board (or any committee to which the Board may delegate such responsibility), acting with Investor Consent, notifies a Sweet Leaver of its determination of the C1 Share Price, C2 Share Price, D1 Share Price and/or D2 Share Price (as applicable) applicable to his/her Sweet Leaver's Shares in accordance with Article 57(d) in writing (**Notice of Sweet Price**), and the Sweet Leaver (acting with

the prior written consent of the Manager and Minority Co-Investor Representative) disputes such Notice of Sweet Price by serving written notice on the Board within 10 Business Days following the service of that Notice of Sweet Price, the Fair Price in respect of the relevant Sweet Leaver's C1 Shares, C2 Shares, D1 Shares and/or D2 Shares (as applicable) (for the purpose of determining their corresponding C1 Share Price, C2 Share Price, D1 Share Price and/or D2 Share Price (as applicable)) shall be determined by the Independent Expert as follows:

- (i) the Board (or any committee to which the Board may delegate such responsibility), acting with Investor Consent, shall promptly instruct the Independent Expert to determine the Fair Price on the basis which, in their opinion, represents a fair market value for (a) such Sweet Leaver's C1 Shares and/or D1 Shares (as applicable) at the Sweet Termination Date or (b) such Sweet Leaver's C2 Shares and/or D2 Shares (applicable) at the later, as the case may be, of (x) the Sweet Termination Date and (y) any applicable Minority Co-Investor Buyback Date, in each case as between a willing seller and a willing buyer and on a going concern basis (provided that this is the case) and, in making such determination, the Independent Expert shall take into account:
 - (A) the rights and restrictions attached to such Shares in respect of income and capital;
 - (B) the fact that the Shares are not quoted on any regulated investment exchange;
 - (C) the group turnover, future and actual cash generation, current and future profitability and growth prospects of the Group;
 - (D) any unencumbered and freely transferable cash balances and marketable securities owned by the Company and any other Group Company;
 - (E) all borrowings, guarantees and any other actual or contingent liabilities of the Company and any other Group Company;
 - (F) the value and existence of any minority interests in any Group Company; and
 - (G) the market value of other companies of a similar size operating in similar markets to the Company (taking into account all other factors in this Article 57(h));
 but shall take no account of:
 - (H) whether the Sweet Leaver's C1 Shares, C2 Shares, D1 Shares and/or D2 Shares (as applicable) comprise a majority or minority interest in the Company; or
 - (I) the fact that the transferability of the Sweet Leaver's C1 Shares, C2 Shares, D1 Shares and/or D2 Shares (as applicable) is restricted in accordance with the Investment Deed and these Articles;
- (ii) the Independent Expert shall certify the Fair Price for the C1 Shares, C2 Shares, D1 Shares and/or D2 Shares (as applicable) as soon as possible after being instructed by the Board (or any committee to which the Board may delegate such responsibility) and, in so certifying, the Independent Expert shall be deemed to be acting as expert and not as arbiter and the Arbitration Act 1996 shall not apply;
- (iii) the certificate of the Independent Expert shall, in the absence of manifest error, be final and binding; and
- (iv) the Board (or any committee to which the Board may delegate such responsibility) shall procure that any certificate required hereunder is obtained with due expedition and the cost of

obtaining such certificate shall be borne by the Company unless (a) such an arrangement would not be permitted by law or (b) where the Fair Price as determined by the Independent Expert is less than 110% of the price (if any) which the Board (or any committee to which the Board delegates responsibility) had previously notified to the Sweet Leaver pursuant to the Notice of Sweet Price as being in its opinion the Fair Price for the C1 Shares, C2 Shares, D1 Shares and/or D2 Shares (as applicable) (for the purpose of determining their corresponding C1 Share Price, C2 Share, D1 Share Price and/or D2 Share Price (as applicable)) (or, if the price which the Board (or any committee to which the Board may delegate such responsibility) had previously notified pursuant to the Notice of Sweet Price was zero, the Fair Price as determined by the Independent Expert is less than 10% of the price at which the relevant C1 Share, C2 Share, D1 Share or D2 Share (as applicable) was issued, being the aggregate of the amount paid up or credited as paid up in respect of the nominal value thereof and any share premium thereon of such C1 Share, C2 Share, D1 Share or D2 Share (as applicable)), in which event the cost shall be borne by the Sweet Leaver and deducted from the consideration payable to such Sweet Leaver for the C1 Shares, C2 Shares, D1 Shares and/or D2 Shares (as applicable) being transferred pursuant to this Article 57.

DIVIDENDS AND OTHER DISTRIBUTIONS

58. Procedure for declaring dividends

- (a) Subject to Article 42, the Company may (with Investor Consent) by ordinary resolution declare dividends, and the Directors may decide to pay interim dividends.
- (b) A dividend must not be declared unless the Directors have (with Investor Consent) made a recommendation as to its amount. Such a dividend must not exceed the amount recommended by the Directors.
- (c) No dividend may be declared or paid unless it is in accordance with Shareholders' respective rights.
- (d) Unless the Shareholders' resolution to declare or Directors' decision to pay a dividend, or the terms on which Shares are issued, specify otherwise, it must be paid by reference to each Shareholder's holding of Shares on the date of the resolution or decision to declare or pay it.

59. Payment of dividends and other distributions

- (a) Where a dividend or other sum which is a distribution is payable in respect of a Share, it must be paid by one or more of the following means:
 - (i) transfer to a bank or building society account specified by the Distribution Recipient either in writing or as the Directors may otherwise decide;
 - (ii) sending a cheque made payable to the Distribution Recipient by post to the Distribution Recipient at the Distribution Recipient's registered address (if the Distribution Recipient is a holder of the Share), or (in any other case) to an address specified by the Distribution Recipient either in writing or as the Directors may otherwise decide;
 - (iii) sending a cheque made payable to such person by post to such person at such address as the Distribution Recipient has specified either in writing or as the Directors may otherwise decide; or
 - (iv) any other means of payment as the Directors agree with the Distribution Recipient either in writing or by such other means as the Directors decide.

- (b) In these Articles, the **Distribution Recipient** means, in respect of a Share in respect of which a dividend or other sum is payable:
- (i) the holder of the Share; or
 - (ii) if the Share has two or more joint holders, whichever of them is named first in the register of members; or
 - (iii) if the holder is no longer entitled to the Share by reason of death or bankruptcy, or otherwise by operation of law, the Transmitttee.

60. No interest on distributions

The Company may not pay interest on any dividend or other sum payable in respect of a Share unless otherwise provided by:

- (a) the terms on which the Share was issued; or
- (b) the provisions of another agreement between the holder of that Share and the Company.

61. Unclaimed distributions

- (a) All dividends or other sums which are:
- (i) payable in respect of Shares; and
 - (ii) unclaimed after having been declared or become payable,
- may be invested or otherwise made use of by the Directors for the benefit of the Company until claimed.
- (b) The payment of any such dividend or other sum into a separate account does not make the Company a trustee in respect of it.
- (c) If:
- (i) 12 years have passed from the date on which a dividend or other sum became due for payment; and
 - (ii) the Distribution Recipient has not claimed it,
- the Distribution Recipient is no longer entitled to that dividend or other sum and it ceases to remain owing by the Company.

62. Non-cash distributions

- (a) Subject to the terms of issue of the Share in question, the Company may, by ordinary resolution on the recommendation of the Directors, decide to pay all or part of a dividend or other distribution payable in respect of a Share by transferring non-cash assets of equivalent value (including, without limitation, Shares or other securities in any Company).
- (b) For the purposes of paying a non-cash distribution, the Directors may make whatever arrangements they think fit, including, where any difficulty arises regarding the distribution:
- (i) fixing the value of any assets;

- (ii) paying cash to any Distribution Recipient on the basis of that value in order to adjust the rights of recipients; and
- (iii) vesting any assets in trustees.

63. Waiver of distributions

Distribution Recipients may waive their entitlement to a dividend or other distribution payable in respect of a Share by giving the Company notice in writing to that effect, but if:

- (a) the Share has more than one holder; or
- (b) more than one person is entitled to the Share, whether by reason of the death or bankruptcy of one or more joint holders, or otherwise,

the notice is not effective unless it is expressed to be given, and signed, by all the holders or persons otherwise entitled to the Share.

CAPITALISATION OF PROFITS

64. Authority to capitalise and appropriation of capitalised sums

- (a) Subject to the Articles, the Directors may, if they are so authorised by an ordinary resolution:
 - (i) decide to capitalise any profits of the Company (whether or not they are available for distribution) which are not required for paying any Priority Amount, or any sum standing to the credit of the Company's share premium account or capital redemption reserve; and
 - (ii) appropriate any sum which they so decide to capitalise (a **Capitalised Sum**) to the persons who would have been entitled to it if it were distributed by way of dividend (the **Persons Entitled**) and in the same proportions.
- (b) Capitalised Sums must be applied:
 - (i) on behalf of the Persons Entitled; and
 - (ii) in the same proportions as a dividend would have been distributed to them.
- (c) Any Capitalised Sum may be applied in paying up new shares of a nominal amount equal to the Capitalised Sum which are then allotted credited as fully paid to the Persons Entitled or as they may direct.
- (d) A Capitalised Sum which was appropriated from profits available for distribution may be applied in paying up new debentures of the Company which are then allotted credited as fully paid to the Persons Entitled or as they may direct.
- (e) Subject to the Articles the Directors may:
 - (i) apply Capitalised Sums in accordance with paragraphs (c) and (d) partly in one way and partly in another;
 - (ii) make such arrangements as they think fit to deal with shares or debentures becoming distributable in fractions under this Article (including the issuing of fractional certificates or the making of cash payments); and

- (iii) authorise any person to enter into an agreement with the Company on behalf of all the Persons Entitled which is binding on them in respect of the allotment of shares and debentures to them under this Article.

ORGANISATION OF GENERAL MEETINGS

65. Convening of general meeting

The Directors or any Investor Director may call a general meeting.

66. Notice of general meeting

- (a) Subject to the provisions of these Articles and to any restrictions imposed on any Shares, notice of general meeting shall be given to all Shareholders, to all persons entitled to a Share by reason of the death or bankruptcy of a Shareholder and to the Directors and auditors.
- (b) A Shareholder present either in person or by proxy, at any general meeting of the Company shall be deemed to have received notice of the meeting and, where requisite, of the purposes for which the meeting was convened.

67. Attendance and speaking at general meetings

- (a) A person is able to exercise the right to speak at a general meeting when that person is in a position to communicate to all those attending the meeting, during the meeting, any information or opinions which that person has on the business of the meeting.
- (b) A person is able to exercise the right to vote at a general meeting when:
 - (i) that person is able to vote, during the meeting, on resolutions put to the vote at the meeting; and
 - (ii) that person's vote can be taken into account in determining whether or not such resolutions are passed at the same time as the votes of all the other persons attending the meeting.
- (c) The Directors may make whatever arrangements they consider appropriate to enable those attending a general meeting to exercise their rights to speak or vote at it.
- (d) In determining attendance at a general meeting, it is immaterial whether any two or more Shareholders attending it are in the same place as each other.
- (e) Two or more persons who are not in the same place as each other attend a general meeting if their circumstances are such that if they have (or were to have) rights to speak and vote at that meeting, they are (or would be) able to exercise them.

68. Quorum for general meetings

- (a) No business other than the appointment of the Chair of the Meeting is to be transacted at a general meeting if the persons attending it do not constitute a quorum. Two Shareholders present in person (or by a duly authorised representative (in the case of a corporation)) or by proxy shall be a quorum at any general meeting, of whom at least one shall be or represent an A Shareholder.
- (b) If at any adjourned meeting such a quorum is not present within 30 minutes from the time appointed for the adjourned meeting the meeting shall be dissolved.

69. Chairing general meetings

- (a) If the Directors have appointed a Chair, the Chair shall chair general meetings if present and willing to do so. The Chair is not entitled to a second or casting vote.
- (b) If the Directors have not appointed a Chair, or if the Chair is unwilling to chair the meeting or is not present within 15 minutes of the time at which a meeting was due to start:
 - (i) the Directors present; or
 - (ii) (if no Directors are present), the meeting,
 must appoint a Director or Shareholder (including a proxy or a corporate representative) to chair the meeting, and the appointment of the Chair of the Meeting must be the first business of the meeting.
- (c) The person chairing a meeting in accordance with this Article is referred to as the **Chair of the Meeting**.

70. Attendance and speaking by Directors and non-Shareholders

- (a) Directors may attend and speak at general meetings, whether or not they are Shareholders.
- (b) The Chair of the Meeting may permit other persons who are not:
 - (i) Shareholders of the Company; or
 - (ii) otherwise entitled to exercise the rights of Shareholders in relation to general meetings,
 to attend and speak at a general meeting.

71. Adjournment

- (a) If the persons attending a general meeting within half an hour of the time at which the meeting was due to start do not constitute a quorum, or if during a meeting a quorum ceases to be present, the Chair of the Meeting must adjourn it.
- (b) The Chair of the Meeting may adjourn a general meeting at which a quorum is present if:
 - (i) the meeting consents to an adjournment; or
 - (ii) it appears to the Chair of the Meeting that an adjournment is necessary to protect the safety of any person attending the meeting or ensure that the business of the meeting is conducted in an orderly manner.
- (c) The Chair of the Meeting must adjourn a general meeting if directed to do so by the meeting.
- (d) When adjourning a general meeting, the Chair of the Meeting must:
 - (i) either specify the time and place to which it is adjourned or state that it is to continue at a time and place to be fixed by the Directors; and
 - (ii) have regard to any directions as to the time and place of any adjournment which have been given by the meeting.

- (e) If the continuation of an adjourned meeting is to take place more than 14 days after it was adjourned, the Company must give at least seven clear days' notice of it (that is, excluding the day of the adjourned meeting and the day on which the notice is given):
 - (i) to the same persons to whom notice of the Company's general meetings is required to be given; and
 - (ii) containing the same information which such notice is required to contain.
- (f) No business may be transacted at an adjourned general meeting which could not properly have been transacted at the meeting if the adjournment had not taken place.

VOTING AT GENERAL MEETINGS

72. Voting – general

A resolution put to the vote of a general meeting must be decided on a show of hands unless a poll is duly demanded in accordance with the Articles.

73. Errors and disputes

- (a) No objection may be raised to the qualification of any person voting at a general meeting except at the meeting or adjourned meeting at which the vote objected to is tendered, and every vote not disallowed at the meeting is valid.
- (b) Any such objection must be referred to the Chair of the Meeting, whose decision is final.

74. Poll votes

- (a) A poll on a resolution may be demanded:
 - (i) in advance of the general meeting where it is to be put to the vote; or
 - (ii) at a general meeting, either before a show of hands on that resolution or immediately after the result of a show of hands on that resolution is declared.
- (b) A poll may be demanded by:
 - (i) the Chair of the Meeting;
 - (ii) the Directors; or
 - (iii) any Shareholder.
- (c) A demand for a poll may be withdrawn if:
 - (i) the poll has not yet been taken; and
 - (ii) the Chair of the Meeting consents to the withdrawal.
- (d) Polls must be taken immediately and in such manner as the Chair of the Meeting directs.

75. Content of Proxy Notices

- (a) Proxies may only validly be appointed by a notice in writing (a **Proxy Notice**) which:

- (i) states the name and address of the Shareholder appointing the proxy;
 - (ii) identifies the person appointed to be that Shareholder's proxy and the general meeting in relation to which that person is appointed;
 - (iii) is signed by or on behalf of the Shareholder appointing the proxy, or is authenticated in such manner as the Directors may determine; and
 - (iv) is delivered to the Company in accordance with the Articles and any instructions contained in the notice of the general meeting (or adjourned meeting) to which they relate.
- (b) The Company may require Proxy Notices to be delivered in a particular form, and may specify different forms for different purposes.
 - (c) Proxy Notices may specify how the proxy appointed under them is to vote (or that the proxy is to abstain from voting) on one or more resolutions.
 - (d) Unless a Proxy Notice indicates otherwise, it must be treated as:
 - (i) allowing the person appointed under it as a proxy discretion as to how to vote on any ancillary or procedural resolutions put to the meeting; and
 - (ii) appointing that person as a proxy in relation to any adjournment of the general meeting to which it relates as well as the meeting itself.

76. Delivery of Proxy Notices etc.

- (a) A person who is entitled to attend, speak or vote (either on a show of hands or on a poll) at a general meeting remains so entitled in respect of that meeting or any adjournment of it, even though a valid Proxy Notice has been delivered to the Company by or on behalf of that person.
- (b) An appointment under a Proxy Notice may be revoked by delivering to the Company a notice in writing given by or on behalf of the person by whom or on whose behalf the Proxy Notice was given.
- (c) A notice revoking a proxy appointment only takes effect if it is delivered before the start of the meeting or adjourned meeting to which it relates.
- (d) If a Proxy Notice is not executed by the person appointing the proxy, it must be accompanied by written evidence of the authority of the person who executed it to execute it on the appointor's behalf.

77. Amendments to resolutions

- (a) An ordinary resolution to be proposed at a general meeting may be amended by ordinary resolution if:
 - (i) notice of the proposed amendment is given to the Company in writing by a person entitled to vote at the general meeting at which it is to be proposed not less than 48 hours before the meeting is to take place (or such later time as the Chair of the Meeting may determine); and
 - (ii) the proposed amendment does not, in the reasonable opinion of the Chair of the Meeting, materially alter the scope of the resolution.
- (b) A special resolution to be proposed at a general meeting may be amended by ordinary resolution, if:
 - (i) the Chair of the Meeting proposes the amendment at the general meeting at which the resolution is to be proposed; and

- (ii) the amendment does not go beyond what is necessary to correct a grammatical or other non-substantive error in the resolution.
- (c) If the Chair of the Meeting, acting in good faith, wrongly decides that an amendment to a resolution is out of order, this error does not invalidate the vote on that resolution.

ADMINISTRATIVE ARRANGEMENTS

78. Means of communication to be used

- (a) Subject to the Articles, anything sent or supplied by or to the Company under the Articles may be sent or supplied in any way in which the Companies Act provides for documents or information which are authorised or required by any provision of that Act to be sent or supplied by or to the Company.
- (b) Subject to the Articles, any notice or document to be sent or supplied to a Director in connection with the taking of decisions by Directors may also be sent or supplied by the means by which that Director has asked to be sent or supplied with such notices or documents for the time being.
- (c) A Director may agree with the Company that notices or documents sent to that Director in a particular way are to be deemed to have been received within a specified time of their being sent, and for the specified time to be less than 48 hours.

79. When a communication from the Company is deemed received

- (a) Any document or information, if sent by first class post, shall be deemed to have been received on the day following that on which the envelope containing it is put into the post, or, if sent by second class post, shall be deemed to have been received on the second day following that on which the envelope containing it is put into the post and in proving that a document or information has been received it shall be sufficient to prove that the letter, envelope or wrapper containing the document or information was properly addressed, prepaid and put into the post.
- (b) Any document or information not sent by post but left at a registered address or address at which a document or information may be received shall be deemed to have been received on the day it was so left.
- (c) Any document or information, if sent or supplied by electronic means, shall be deemed to have been received on the day on which the document or information was sent or supplied by or on behalf of the Company.
- (d) If the Company receives a delivery failure notification following a communication by electronic means in accordance with paragraph (c) above, the Company shall send or supply the document or information in hard copy or electronic form (but not by electronic means) to the Shareholder either personally or by post addressed to the Shareholder at the Shareholder's registered address or by leaving it at that address. This shall not affect when the document or information was deemed to be received in accordance with paragraph (c) above.
- (e) Where a document or information is sent or supplied by means of a website, it shall be deemed to have been received:
 - (i) when the material was first made available on the website; or
 - (ii) if later, when the recipient was deemed to have received notice of the fact that the material was available on the website.

- (f) Every person who becomes entitled to a Share shall be bound by every notice in respect of that Share which before that person's name is entered in the register of members was given to the person from whom the person derives title to the Share.

80. Notices in writing given to the Company by Shareholders

Any notice in writing given to the Company by a Shareholder shall take effect when it is lodged at the registered office or produced to any Directors' meeting.

81. Company seals

- (a) Any common seal may only be used by the authority of the Directors or of a committee of the Directors.
- (b) The Directors may decide by what means and in what form any common seal is to be used.
- (c) Unless otherwise decided by the Directors, if the Company has a common seal and it is affixed to a document, the document must also be signed by at least one authorised person in the presence of a witness who attests the signature.
- (d) For the purposes of this Article, an authorised person is:
 - (i) any Director of the Company;
 - (ii) the Company's secretary (if any); or
 - (iii) any person authorised by the Directors for the purpose of signing documents to which the common seal is applied.
- (e) The Company may exercise the powers conferred by the Companies Act with regard to having official seals and those powers shall be vested in the Directors. Subject to the Companies Act, any instrument to which an official seal is affixed shall be signed by such persons, if any, and affixed in such manner as the Directors may from time to time determine.

82. No right to inspect accounts and other records

Except as provided by law or authorised by the Directors or an ordinary resolution of the Company, no person is entitled to inspect any of the Company's accounting or other records or documents merely by virtue of being a Shareholder.

83. Provision for Employees on cessation of business

The Directors, with Investor Consent, may decide to make provision for the benefit of persons Employed or formerly Employed by the Company or any of its Subsidiaries (other than a Director or former Director or shadow Director) in connection with the cessation or transfer to any person of the whole or part of the undertaking of the Company or that Subsidiary.

WINDING UP

84. Winding up

If the Company is wound up, the liquidator may, with the sanction of a special resolution of the Company and any other sanction required by the Companies Act, divide among the Shareholders *in specie* the whole or any part of the assets of the Company and may, for that purpose, value any assets and determine how the division shall be carried out as between the Shareholders or different classes

of Shareholders. The liquidator may, with the like sanction, vest the whole or any part of the assets in trustees upon such trusts for the benefit of the Shareholders as the liquidator with like sanction determines, but no Shareholder shall be compelled to accept any assets upon which there is liability.

DIRECTORS' INDEMNITY AND INSURANCE

85. Indemnity

- (a) Subject to paragraph (e) below, a Relevant Director of the Company or of an associated company may be indemnified out of the Company's assets against:
 - (i) any liability incurred by that Director in connection with any negligence, default, breach of duty or breach of trust in relation to the Company or an associated company;
 - (ii) any liability incurred by that Director in connection with the activities of the Company or an associated company in its capacity as a trustee of an occupational pension scheme (as defined in section 235(6) of the Companies Act); or
 - (iii) any other liability incurred by that Director as an officer of the Company or an associated company.
- (b) The Company may fund the expenditure of a Relevant Director of the Company or of any associated company for the purposes permitted under the Companies Act and may do anything to enable such Relevant Director to avoid incurring such expenditure as provided in the Companies Act.
- (c) No Relevant Director of the Company or of any associated company shall be accountable to the Company or the Shareholders for any benefit provided pursuant to this Article and the receipt of any such benefit shall not disqualify any person from being or becoming a Director of the Company.
- (d) The powers given by this Article shall not limit any general powers of the Company to grant indemnities, purchase and maintain insurance or provide funds (whether by way of loan or otherwise) to any person in connection with any legal or regulatory proceedings or applications for relief.
- (e) This Article does not authorise any indemnity which would be prohibited or rendered void by any provision of the Companies Act or by any other provision of law.
- (f) In this Article and in Article 86:
 - (i) companies are **associated** if one is a Subsidiary of the other or both are Subsidiaries of the same body corporate; and
 - (ii) a **Relevant Director** means any Director or former Director of the Company or of an associated company.

86. Insurance

- (a) The Directors may decide to purchase and maintain insurance, at the expense of the Company, for the benefit of any Relevant Director in respect of any Relevant Loss.
- (b) In this Article a **Relevant Loss** means any loss or liability which has been or may be incurred by a Relevant Director in connection with that Director's duties or powers in relation to the Company, any associated company or any pension fund or Employees' share scheme of the Company or associated company.

87. Taxation

The Company shall be treated as a partnership for US federal income tax purposes, and the Company has made an affirmative election in the form specified by the Investors to be treated as a partnership for US federal income tax purposes and shall take no action that would cause the Company to be treated as a corporation for US federal income tax purposes. For purposes of compliance with U.S. federal income tax law, the Company and the Shareholders agree to the following provisions (and shall comply therewith):

- (i) it is intended that the Company will be treated as a partnership for U.S. federal, state and local income tax purposes and shall cooperate in making an election to be treated as such;
- (ii) the “partnership representative” of the Company within the meaning of Section 6223 of the U.S. Internal Revenue Code of 1986 (the **Code**) and the Treasury Regulations (and similar provisions of state or local law) (the **Partnership Representative**) shall be such person designated as such by the Investors in accordance with the Code and the Treasury Regulations (and similar provisions of state or local law) and, in such capacity, shall exercise all rights conferred, and perform all duties imposed, upon a Partnership Representative under the Code and the Treasury Regulations (and similar provisions of state or local law). The Partnership Representative may cause the Company to make such elections under the Code and the Treasury Regulations, including those permitted under Section 754 of the Code, and state tax or similar laws as it shall reasonably determine. All decisions and other matters concerning the computation and allocation of items of income, gain, loss, deduction and credits among the Shareholders, and U.S. tax accounting procedures not specifically and expressly provided for by the terms of these Articles, shall be determined by the Partnership Representative in its reasonable discretion;
- (iii) the Company shall establish and maintain a capital account (**Capital Account**) in accordance with the rules under with Section 704(b) of the Code and Treasury Regulations thereunder, and shall be interpreted and applied in a manner consistent with such provisions. The Partnership Representative may determine in its reasonable discretion that it is prudent to modify the manner in which the Shareholders’ Capital Accounts, or credits or debits thereto, are computed in order to comply with the provisions of Section 704(b) of the Code and Treasury Regulations Section 1.704-1(b) and may make such modification. Except as otherwise provided in the Treasury Regulations, a transferee of all or a portion of a Shareholder’s interest in the Company shall succeed to the Capital Account of the transferor Shareholder to the extent allocable to the transferred interest;
- (iv) for United States federal income tax purposes, allocations of items of income, gain, loss, deduction, expense, and credit for each fiscal year of the Company shall be in accordance with each Shareholder’s interest in the Company, as reasonably determined by the Partnership Representative in good faith pursuant to Section 704(b) of the Code, and the Treasury Regulations and subject to the requirements of Section 704(c) of the Code and the Treasury Regulations; provided that the Priority Amount payable in respect of the Priority Shares shall be treated as distributive shares of Company income (determined on a net income rather than gross income basis) under applicable provisions of the Code and the Treasury Regulations and no portion of the Priority Amount payable in respect of the Priority Shares will be treated as a guaranteed payment, capital shift or any similar construct unless otherwise required by a final “determination” (within the meaning of Section 1313(a) of the Code) or a change in applicable law after the Completion Date; and
- (v) any amounts that are subject to United States withholding may be withheld by the Company and remitted to the relevant tax authorities which shall be treated as a distribution from the Company to the party on which such withholding obligation was imposed. The Partnership

Representative will use its reasonable discretion to determine whether a withholding is necessary and provide each party an opportunity to provide documentation to reduce or eliminate any withholding.